The Federated Republic

CONSTITUTION

182 provisions · 20 articles
thefederatedrepublic.org

Preamble

We built a Republic worth living in — and worth adopting. Here is why.

We came from different nations, communities, and traditions, and out of that difference we made something none of us could have made alone: a government strong enough to act, restrained enough to trust, and answerable — always — to you.

We built it on one conviction: the person comes before the state. You are whole and equal. You hold rights no government granted and none can take away. Behind those rights we placed the entire weight of the Republic, so that no one among you is ever left without remedy, without a voice, or without the conditions of a decent life.

We founded it on the consent of the governed, the self-government of its constituent communities, and the recognition of sovereignty that came before us and was never surrendered.

And we did not ask you to trust us. We divided public authority, limited it, and subjected it to independent courts, open government, democratic election, permanent public record, and effective remedy — so that no office and no institution stands above this Constitution. We opened the state to the light, so you can see how you are governed. We bound every office we created — even the ones we admired most — so this Republic stays yours whether it is governed well or badly. That is the difference: most governments ask for your faith. This one gives you the means to withhold it.

We made these things to hold not only in times of wise government and public accord, but against error, abuse, emergency, and division.

What follows is long because your freedom is detailed, and every page of it exists to keep a promise made to you.

Read it. Then adopt it, and make it your own.

Article I — Individual Sovereignty and Rights

§1.1 — Right to Courts and Legal Remedy

Every person may seek legal remedy for any rights violation before an independent and impartial court. This right is self-executing: where the Legislature has not funded adequate legal aid, courts appoint counsel at public expense. Procedural costs may not be used to make the right to a remedy illusory.

§1.2 — Individual Sovereignty Floor

Every person possesses an inviolable sphere of personal sovereignty over their own life, body, and choices. Government authority operates outside this sphere. Where the boundary is disputed, the presumption runs in favor of individual liberty; government bears the burden of demonstrating constitutional authority for any limitation.

§1.3 — Prohibition of Torture and Cruel Treatment

Torture and cruel, inhuman, or degrading treatment are absolutely prohibited. No person, wherever located, may be subjected to any such treatment by an agent or officer of the Republic acting in that capacity, nor by any person acting at the direction or with the acquiescence of the Republic.

§1.4 — Prohibition of Slavery and Forced Labor

Slavery, involuntary servitude, and forced labor are absolutely prohibited. Labor required of a person convicted of an offense by a court, and jury service, military conscription, and civil emergency duties lawfully required of citizens, do not constitute forced labor under this provision. Labor for the benefit of a private party requires the person's consent.

§1.5 — Civil and Political Liberties

Every person holds the rights of expression, thought, conscience, religion, association, assembly, petition, and movement. Government may regulate the time, place, and manner of expression and assembly only as necessary for public order and without discriminating on the basis of viewpoint. No government may compel expression, or suppress it directly or through intermediaries it controls or directs. Freedom of religion protects belief absolutely; it protects practice against limitation except where practice causes direct harm to others.

§1.6 — Equality and Non-Discrimination

Every person is equal before the law. Government may not discriminate on the basis of race, ethnicity, sex, sexual orientation, gender identity, religion, national origin, disability, age, or economic status. A distinction based on a listed characteristic requires compelling justification, except reasonable age distinctions based on developmental capacity, lifecycle considerations, or demonstrated actuarial risk, and economic distinctions extending greater benefits or assistance to persons of lesser means. Other distinctions must be rationally related to a legitimate governmental purpose.

§1.7 — Bodily Sovereignty

Medical decisions belong to the individual and their chosen provider. Government may promote public health through information, licensing, and access, but may not compel medical decisions or penalize their exercise. No government may impose civil or criminal liability solely for receiving, assisting access to, or providing information about medical care lawful where received.

§1.8 — Privacy, Property, and Security of the Home

Every person holds the right to privacy and security in their person, home, communications, and data, and the right to own property. Government may not enter a home or search, surveil, or collect a person, communication, or data without consent or prior independent judicial authorization based on specific, articulable grounds. Encryption is lawful and may not be prohibited. Private property may be taken for public use only upon just compensation determined by an independent process.

§1.9 — Democratic Participation

Every citizen has the right to vote, stand for office, participate in the democratic processes of the Republic subject to constitutional eligibility requirements, and have their vote counted. No governmental action whose purpose or substantial effect is to suppress or reduce access to the franchise is constitutionally valid. The Republic shall make voting broadly accessible consistent with electoral security but may not compel voting.

§1.10 — Right to Bear Arms

Every person holds the right to keep and bear arms for lawful purposes, including self-defense. The Legislature and States may regulate the licensing, safety, type, transfer, and carry of arms, provided lawful ownership for self-defense remains available.

§1.11 — Habeas Corpus

Every person detained by public authority has the right to challenge that detention before an independent and impartial court. The detaining authority must produce the person and justify the detention within the period established by statute, not to exceed 72 hours. No court may decline to hear an application for habeas corpus.

§1.12 — Rights of the Accused and Fair Trial

Every person accused of a criminal offense has the right to prompt notice of the charges; counsel of their choosing, or competent counsel at public expense if unable to afford representation; adequate time and means to prepare a defense; examination of witnesses; silence without adverse inference; and a speedy trial. No person may receive a greater penalty solely for exercising the right to trial. Bail may be imposed only as reasonably necessary to ensure appearance or protect public safety and may not be punitive. Where systematic or automated methodology generates evidence, the accused has the right to examine that methodology in full.

§1.13 — Right to a Public Trial

Every person accused of a criminal offense has the right to a public trial before an independent and impartial court. Proceedings may be closed only to the minimum extent necessary to protect a compelling interest identified by the court; the grounds and expected duration of closure must be published to the NRS. No record may remain sealed beyond 10 years from final judgment unless a court grants one extension, not exceeding five years, upon published findings of continuing necessity. Upon expiry of lawful sealing, the NRS Panel shall publish the record automatically. The accused or convicted person may consent to earlier publication, except to the extent necessary to protect the interests of another person.

§1.14 — Freedom from Retroactive Criminal Law

No person may be convicted for conduct that was not criminal when committed, and no criminal law may otherwise be applied retroactively to the disadvantage of the accused.

§1.15 — Double Jeopardy

No person may be tried or punished twice for the same offense following final acquittal or conviction. Offenses are the same where they arise from the same conduct and the later charge requires no element distinct from the earlier charge. A State and the Republic may each prosecute the same conduct under their respective laws, but sentences arising from substantially the same conduct run concurrently and only the greater term is served, with time served credited to both.

§1.16 — Social Assistance Floor

Every Inhabitant is entitled to access the Republic's social-state systems under Article XII. No government may exclude any person from social assistance on a ground prohibited by §1.6.

§1.17 — Education

Every child has the right to education adequate for full civic participation. Parents have the right to direct the education of their children within public educational standards.

§1.17.a — Social Rights Implementation

The Legislature shall establish adequate standards by statute for the rights protected by §§1.16 and 1.17. The EM shall assess those standards annually. The Republic shall take reasonable measures within available resources toward progressive fulfillment of these rights. An established adequacy standard may be reduced only during a certified Severe Revenue Contraction under §12.4 and only as that section permits.

§1.18 — Environmental Obligations

Government may not itself cause, or systematically permit through licensing, material environmental harm to persons or communities within its jurisdiction. The Legislature shall establish environmental protections. Government shall take reasonable measures proportionate to harms known or reasonably capable of identification; this provision does not guarantee a particular environmental outcome.

§1.19 — Emergency Derogation

No emergency suspends the Individual Sovereignty Floor in full. Rights other than those protected by §1.19.a may be temporarily derogated only upon a declaration stating the emergency, rights affected, geographic scope, and duration, published immediately to the NRS. Either executive may issue such a declaration within their constitutional domain for no more than 14 days. Continuation beyond 14 days requires a statute enacted through the ordinary legislative process with a fixed expiration date, which may not be extended or renewed.

All emergency measures lapse automatically with the declaration under which they were imposed. Judicial review remains available throughout the emergency. Each declaration under this section shall receive independent judicial review within 48 hours of publication by the court designated by statute. A substantially similar derogation may not be declared within 60 days after expiry; thereafter, re-declaration requires 2/3 of both chambers.

The three Monitors retain their full constitutional authority throughout any emergency.

§1.19.a — Non-Derogable Rights

These six rights are absolute: the prohibition on torture (§1.3); slavery (§1.4); habeas corpus (§1.11); the right to a public trial (§1.13); no retroactive punishment (§1.14); and non-refoulement (§1.21). No emergency measure, regardless of its stated purpose, may be applied in a discriminatory manner on the basis of race, ethnicity, religion, national origin, sexual orientation, or gender identity; any such application is constitutionally void.

§1.20 — Right to Seek Asylum

Every person who reaches the Republic's jurisdiction has the right to claim asylum and to an independent determination of that claim under §6.3. Manner of entry does not affect this right. An asylum seeker is an Inhabitant from the date of claim and holds all rights under this Article.

§1.21 — Non-Refoulement

No person, wherever located, may be returned, expelled, or extradited by the Republic, or by anyone acting at its direction or with its acquiescence, to any territory where they face genuine risk of persecution, torture, or deprivation of life. This protection applies regardless of the person's status, conduct, or the nature of the receiving territory's government.

§1.22 — Family

Every person holds the right to found a family.

Article II — The Dual Executive

§2.1 — The Legat Consul — Domain and Term

To hold the office of Legat Consul, a person must have been a citizen for at least 7 years at the time of taking office. The Legat Consul holds authority over military command and force employment; foreign affairs, including treaty negotiation, recognition of foreign governments, and receipt of foreign delegations; external intelligence under §2.3; trade agreements under §2.4; relations with recognized indigenous nations under Article XVI, including recognition determinations under §16.4; and appointments within the Legat Consul's domain. During active military operations, operational decisions within that domain belong to the Legat Consul. The Legat Consul serves a term of four years. No person may serve more than 12 years as Legat Consul across all periods of service. A person who serves any portion of a term, by election or succession, may not seek election at the next election for that office. Upon expiration of the term, all authority transfers immediately to the incoming Legat Consul.

§2.2 — Military Authorization Framework

The Legat Consul may use military force in immediate response to an active or imminent attack on Republic territory, citizens abroad, or treaty allies. Beyond immediate response, military force requires legislative authorization. The Legat Consul shall notify both chambers and the Civic Consul promptly, and no later than 24 hours after any use of force. Legislative authorization expires unless affirmatively renewed at intervals defined by statute, not exceeding 12 months; expiration requires cessation of operations. Every operation must state and remain consistent with a purpose authorized by §14.1.

§2.3 — Consular Intelligence

The Legat Consul directs external intelligence. No intelligence operation may be conducted against Republic citizens within Republic territory on the Legat Consul's authority; such operations require independent judicial authorization.

§2.3.a — Legat Consul Legislative Veto

The Legat Consul may veto legislation that raises a genuine constitutional concern within the Legat Consul's security domain — military operations, external intelligence, treaty obligations, or border security — by returning the bill within 10 business days of final passage with written grounds. The veto may be used only once on any bill; a bill reintroduced and passed by both chambers in a subsequent session proceeds without further Legat Consul veto. Either Speaker may request an EM assessment of the domain question under §9.1. The Senate may override by 2/3 at any time during that session; absent override, the bill lapses for that session.

§2.4 — Legat Consul International Agreements

The Legat Consul negotiates and concludes treaties and trade agreements, subject to §3.6. The Legat Consul shall consult the Civic Consul on trade agreements, and on treaties and compacts with recognized indigenous nations, where their terms bear on domestic interests; the Civic Consul's response is advisory.

§2.4.a — Domain Officers

The Legat Consul may appoint domain officers to exercise defined portions of the Legat Consul's authority. Domain officers are nominated from the qualified pool maintained under §9.8 and confirmed by the Senate. Statute defines particular offices, qualifications, acting service, and administration, but may not transfer, enlarge, or diminish the Legat Consul's constitutional authority. The Legat Consul may dismiss a domain officer; the Senate may remove one by majority of full seated membership.

§2.5 — The Civic Consul — Domain and Term

(1) The Civic Consul holds residual executive authority over all functions not enumerated to the Legat Consul.

(2) No person may serve more than 12 years as Civic Consul across all periods of service. A person who leaves the office of Civic Consul may not serve again as Civic Consul until one full Assembly electoral cycle has passed.

(3) The Civic Consul's domestic authority includes domestic policy and regulatory frameworks, preparation of the civic-domain budget under §12.2, the civil service, and administration of the social state under Article XII.

(4) The Civic Consul may declare a domestic emergency in response to natural disaster, public health crisis, or infrastructure failure, subject to Article I and renewable by Assembly approval at intervals defined by statute; absent a statutory interval, the constitutional default is 30 days. The Legat Consul has no authority in domestic emergencies except assistance under §2.14.b.

(5) The Civic Consul has the right to be informed on matters within the Legat Consul's domain that bear on domestic interests or create domestic fiscal obligations. No classification or domain assertion may withhold such information.

(6) The Civic Consul appoints ministers to lead the civic domain. Ministers serve at the Civic Consul's pleasure without confirmation. Their portfolios and administration are defined by statute. Upon a change of Civic Consul, outgoing ministers remain in caretaker service limited to maintaining existing policy until successors are appointed.

§2.6 — Constructive Vote of No Confidence

(1) The Civic Consul is accountable to the Assembly and may be removed only by a constructive vote of no confidence that simultaneously elects a named successor by absolute majority of the full seated Assembly. A vote that does not elect a successor has no constitutional effect. The grounds are stated with the vote; the vote is a political act not subject to judicial review.

(2) Only a serving Assembly member may be elected Civic Consul. Upon election, that member's Assembly seat becomes vacant under §3.2. While serving as Civic Consul, the officeholder may sit, speak, and be held to account in the Assembly but has no legislative vote and is not counted toward membership, quorum, or voting thresholds.

(3) The Civic Consul serves until removal under this section, resignation, or exhaustion of the service limit under §2.5. Leaving office does not restore the Assembly seat previously vacated.

(4) An Acting Civic Consul is not removable under this section.

§2.6.a — Government Formation

(1) The Assembly elects the Civic Consul by absolute majority within the period defined by statute following a vacancy; absent such statute, the constitutional default is 21 days.

(2) If the Assembly does not elect a Civic Consul within that period, the sitting Assembly Speaker becomes Acting Civic Consul by constitutional operation with authority limited to maintaining existing policy. If there is no sitting Speaker, the most senior Assembly member by continuous service acts instead; ties are resolved by age.

(3) Bills passed during acting service are presented to the Acting Civic Consul, who may not exercise the §2.7 veto but may issue a reconsideration notice under §2.7. The notice pauses the review period for 10 business days without further action, during which the Assembly may withdraw the bill by simple majority.

(4) The Acting Civic Consul administers a nominating ballot of the Assembly to identify candidates for a national election. The ballot requires no quorum and produces its result regardless of participation. The candidates receiving the most votes advance, being no fewer than two and no more than four; where a tie would cause more than four candidates to advance, greater continuous service controls, then age.

(5) The Elections Panel administers a national ranked-choice election among the advancing candidates within the period defined by statute, with a constitutional default of 45 days and an absolute maximum of 90 days from the close of the nominating ballot.

(6) The winner becomes Civic Consul under §2.6; acting service ends upon installation.

(7) Before the national election begins, the Assembly may elect a Civic Consul by absolute majority, terminating the fallback. Once the national election begins, it proceeds to conclusion.

§2.7 — Civic Consul Legislative Instruments

The Civic Consul may, within 10 business days of final passage, return a bill with written grounds. The bill is suspended for one month, during which the Senate may override by 2/3. If not overridden, the bill returns to the Legislature and must again pass both chambers; upon repassage it is not subject to another Civic Consul veto, including after reintroduction in a later session.

Within the review period, the Civic Consul may issue a reconsideration notice identifying provisions recommended for revision or deletion, with reasons. Before the review period expires, the Assembly Speaker may pause the review period for up to 10 business days, during which the Assembly may withdraw the bill by simple majority. If the bill is not withdrawn, the review period resumes where it paused. A reconsideration notice may be issued once on any bill and is unavailable for emergency legislation.

Both Consuls review concurrently from final passage. A bill that neither Consul vetoes within its review period becomes law by constitutional operation. The veto is unavailable for the annual budget, legislation implementing a constitutional obligation, or emergency legislation. A bill is emergency legislation only when so designated at final passage by 2/3 of the full seated membership of both chambers.

§2.8 — Duty of Refusal

No civil servant, military member, or person exercising specific federal authority may comply with an order from either executive that would require violation of this Constitution or statute. Lawful refusal creates no civil or criminal liability and may not support dismissal or penalty; any such penalty is void. The person may report the order to the EM, which may investigate.

§2.9 — Legat Consul Succession and Incapacity

(1) Full succession activates upon the Legat Consul's death, resignation, or removal. The Senate Speaker holds the office from that moment by constitutional operation.

(2) Full succession vacates the successor's Senate seat, which is filled through the ordinary vacancy process. If the Senate Speaker is unable to serve, the most senior Senator by continuous service succeeds; ties are resolved by age.

(3) Statute may extend the order of succession beyond subsection (2) and designate successors between the Senate Speaker and the senior-Senator fallback.

(4) The military chain of command recognizes succession from the constitutional moment of transfer. Any order issued in the name of the prior Legat Consul after transfer is void.

(5) A successor serves the remainder of the current term. Service through full succession counts toward the 12-year service limit under §2.1.

§2.9.a — State Emergency Council

(1) At each federal electoral period the Elections Panel draws an ordered list of the States by public lot and publishes it to the NRS. A State's head of state is the officer its constitution designates or, absent a designation, the presiding officer of its legislature.

(2) If no one in the Legat Consul's order of succession can be reached, the head of state of the first reachable State on the list is the Emergency Designee. The Designee commands the military and acts to restore constitutional government.

(3) The heads of state of the other reachable States form the State Emergency Council, which directs the Designee and may replace them. The Designee and the Council are bound by Article I.

(4) Ten days after a declaration under §2.11 or the Designee taking office, whichever comes first, any federal seat or Consular office whose holder cannot be reached is vacant. The States and Territories may fill their vacant seats by emergency election, and the Consular offices are filled under §2.9 and §2.6.a.

(5) A person above the Designee in the order of succession who can act resumes their office at once. The Council and the Designee end when each chamber has a majority of its seats filled and the Consular offices are filled under §2.9 and §2.6.a. Members seated after the failure join the order of succession only then.

(6) If that has not happened within six months after the Designee took office, the Council and the Designee end and §15.7.a applies.

§2.10 — Executive Transparency

Both executives shall publish their official acts to the NRS within the period defined by statute. This obligation includes orders, certifications, vetoes, determinations, objections, refusals, and other acts of non-consent. No executive may classify, delay, or suppress publication of an act this Constitution requires to be public. Every such record is permanently attributed to the responsible officer.

§2.11 — Emergency Governance

When extraordinary circumstances prevent the ordinary functioning of constitutional government, either Consul, or a majority of the available members of either legislative chamber, may declare a continuity emergency, notwithstanding ordinary quorum requirements. The declaration states the circumstances, is published to the NRS, and is sent to every State and Territory.

During a continuity emergency, each chamber able to meet may act notwithstanding ordinary quorum requirements, and where one chamber cannot meet the other may act alone, but only as necessary to preserve essential governmental functions, including the administration of elections, and to restore normal constitutional governance. During a continuity emergency, a threshold this Constitution calculates from the full seated membership of a chamber is calculated from the members able to act. Emergency action may not amend this Constitution, extend any term or mandate except under §7.2.a, or derogate rights except under §1.19. Measures adopted under this section lapse when the emergency ends unless enacted through the ordinary legislative process. Where a Consul is unavailable, authority passes under §2.9, §2.16 and §2.9.a.

A declaration lapses after 30 days unless renewed by the same process. Any member of either chamber or any Monitor may seek expedited SC review under §4.5(7).

Emergency procedures yield to ordinary constitutional procedures as soon as those procedures can function. No emergency authority may be used to delay or obstruct that restoration.

§2.12 — Clemency

Each Consul may grant clemency only for offenses within that Consul's constitutional domain: the Legat Consul for military-law and national-security offenses, and the Civic Consul for domestic federal offenses. No person may grant clemency to themselves; an attempted self-clemency is void.

Every grant shall state its reasons. The granting Consul or either chamber may request an EM factual review; review does not suspend, condition, or invalidate the grant. Clemency does not bar any otherwise available constitutional, political, civil, or criminal remedy for misconduct connected with its exercise. Group amnesty requires legislation.

§2.13 — Consular Removal

The Legat Consul may be removed through either of two independent processes. Legislative removal requires 2/3 of both chambers in concurrent vote for constitutional breach, demonstrated permanent incapacity, or serious misconduct. Either chamber may request a JMC assessment, which is not a prerequisite to removal.

Alternatively, a majority of the Senate may refer removal to a national recall referendum. The Legat Consul remains in authority while the referendum is pending and is removed upon certification of 60% approval with at least 55% citizen participation under §7.3. Succession then occurs immediately under §2.9. A failed recall referendum may not be initiated again during the same term.

§2.14 — Council of Ministers

The Council of Ministers consists of the Legat Consul's domain officers and the Civic Consul's ministers and serves as the standing forum for cross-domain coordination and disputes. It may coordinate positions and make recommendations but exercises no executive authority. Pending resolution of a domain dispute, each Consul may continue only functions clearly within that Consul's established domain and the disputed action is suspended. Unresolved disputes over executive domain may be submitted by either Consul to the SC under §4.5. A summary record of each session is published to the NRS; the existence and general subject of a session may not be classified.

§2.14.a — Cross-Domain Emergency Lead

In a cross-domain emergency requiring unified operational authority, either Consul may propose a temporary operational lead. The designation requires concurrence of both Consuls and publication to the NRS. If they cannot agree, either may seek expedited SC resolution under §4.5. The designation coordinates operations only and does not transfer constitutional domain authority.

§2.14.b — Cross-Domain Assistance

Either Consul may request assistance from the other within the responding Consul's constitutional domain. The request shall state its purpose, scope, and duration and be published to the NRS. The requesting Consul controls the purpose and limits of assistance; the responding Consul determines whether and how to act, controls the means, and publishes the response. Neither Consul may compel the other.

Assistance may provide non-coercive support but may not under this section be used to compel, detain, direct, surveil, monitor, or collect intelligence on persons within the Republic, or to commandeer civilian resources. Such authority requires §1.19 or another express constitutional source.

Assistance remains subject to Article I, may not exceed 90 days without a fresh request and response, and disputes are resolved under §2.14. A foreign invasion or comparable cross-domain threat is governed by §2.14.a.

§2.15 — Federal Prosecution

The Civic Consul is responsible for enforcement of federal law and may set general prosecution policy. The Legislature shall establish by statute a Federal Prosecution Service independent in individual prosecutorial decisions. Any executive direction concerning a specific prosecution must be in writing and published to the NRS when issued. The Legislature may not reduce the Service's appropriation below the prior year's level without a 2/3 vote of both chambers.

§2.16 — Executive Incapacity

(1) A Consul is temporarily unable to exercise authority upon the Consul's declaration or a determination by a majority of the Council of Ministers, with at least five participating. Acting authority then vests immediately in the Speaker of the Consul's chamber — the Assembly for the Civic Consul, the Senate for the Legat Consul — then in any successors designated by statute, then in the most senior member of that chamber by continuous service, ties resolved by age.

(2) The Consul may declare the incapacity ended, restoring authority 24 hours after publication. If incapacity is again determined on substantially the same grounds within 90 days, the determination requires two-thirds of the deciding body, and restoration for the following 30 days requires approval by a majority of that body or relief from the SC.

(3) By simple majority of each chamber, the Legislature may extend that heightened-restoration period, but not beyond six months from the renewed determination. Continuation thereafter requires a fresh two-thirds incapacity determination.

(4) A Consul may seek expedited SC review of a heightened incapacity determination. Review is limited to lawful invocation and whether the stated grounds concern inability to exercise the office; political or policy disagreement alone is not incapacity.

(5) If fewer than five Council members are available, legislators are selected by lot to bring the deciding body to five: from the Senate for a Civic Consul proceeding and from the Assembly for a Legat Consul proceeding. The same thresholds apply.

(6) A person next in an acting succession order may decline within 48 hours by NRS publication, whereupon authority passes immediately to the next qualified person. Failure to decline constitutes acceptance; the final available successor may not decline.

(7) Incapacity suspends only the exercise of authority and does not remove the Consul from office. Death, resignation, removal, and other succession events remain effective.

(8) If an acting Consul becomes temporarily unable to serve, acting authority passes immediately to the next qualified successor.

(9) Acting service does not count toward any Consular service limit and neither extends nor suspends the acting officer's underlying electoral mandate; if that mandate ends, acting authority passes to the next qualified successor.

§2.17 — Cooling-Off from Executive Service

During any constitutional cooling-off period barring a person from holding or seeking either Consular office, that person may not serve in any executive capacity, including as a minister, domain officer, or Acting Consul. This is the express exception to §7.4(5) and does not bar otherwise lawful service outside the executive branch.

§2.18 — Domestic Insurrection

During armed insurrection against the constitutional order, the Council of Ministers shall remain convened. The Civic Consul shall report to the Assembly at intervals defined by statute for the duration of the response, as the Legat Consul reports to the Senate under §14.2. No required report may be withheld because operations remain ongoing.

Article III — The Legislature

§3.1 — The Legislature

The Legislature comprises the Assembly and the Senate. All legislation originates in the Assembly. The Senate may review and amend an Assembly-passed bill within its subject matter and must act within 90 days or any shorter period defined by statute. By majority of full seated membership, the Senate may once extend review for up to 30 days upon stated cause. Failure to act by the applicable deadline constitutes approval. Neither chamber may indefinitely delay business constitutionally assigned to it.

§3.2 — The Assembly

(1) Members of the federal Assembly are elected by Ranked Choice Voting. States determine their own Assembly district arrangements, subject to §3.3. Single-member districts use majority-based Ranked Choice Voting; multi-member districts use proportional Ranked Choice Voting. A State or Territory allocated only one seat constitutes a single electoral district. Seats are allocated by the Webster method based on population, with a minimum of one seat per State and Territory. The constituency divisor is established and may be adjusted by statute, subject to the minimum-seat guarantee.

(2) The census, conducted every ten years by a statutory independent agency, is the basis for reapportionment. The LM audits the census and allocation process.

(3) The Assembly selects a Speaker from its own members by a method it establishes, provided the Speaker holds the support of a majority of full seated membership. The Speakership is a standing office. Quorum is a majority of full seated membership. The Assembly establishes its own internal procedures.

(4) Members serve two-year terms. No member may serve more than six consecutive terms without sitting out one full electoral cycle; upon return, a member may serve up to three additional terms, after which no further Assembly service is permitted.

(5) Mid-term vacancies are filled by special election administered by the Elections Panel within the period defined by statute, not exceeding 90 days.

(6) A State may establish a political recall process for its Assembly members and senators, with the final decision vested in the State legislature or eligible voters. No executive officer, administrative body, or court may alone recall a member. A recalled member's seat becomes vacant under this Constitution.

§3.3 — Electoral Districts

States draw their own Assembly district maps subject to five criteria: substantially equal population per representative, accounting for the number of members elected by each district; geographic contiguity; compliance with §1.6 non-discrimination; no material dilution of minority voting power; and reasonable compactness. Voter political affiliation data, voting history data, and incumbent residence may not be used as criteria in drawing district boundaries. Racial composition and other protected-class data may be considered only to the extent reasonably necessary to comply with §1.6 and the prohibition on material dilution of minority voting power. The LM reviews all maps for compliance. The Elections Panel shall address each finding of non-compliance by a published determination. Where the Panel determines a map non-compliant and an election will occur before the State adopts a compliant map, the Panel draws an interim compliant map for that election, which is retired when the State adopts a compliant map. Territorial districts are drawn by the Elections Panel under the same criteria. Any citizen, State government, or parliamentary minority may challenge a map before the SC.

§3.4 — Legislative Standards

Every bill must address a single clearly defined subject. Any member or either chamber may request an LM assessment of compliance. The full text of a bill must be published to the NRS for the minimum period defined by statute before final passage; substantial amendment restarts that period.

Each chamber operates as a full-time legislative body. Its sitting schedule for each electoral cycle, and every revision, is published to the NRS. No recess may be used to defeat or delay a constitutional duty or deadline. Emergency sessions may be called by either Consul or by petition of one-third of either chamber.

The Legislature shall maintain an ethics process capable of sanctioning and referring members. Each chamber may expel a member by 2/3 of full seated membership, effective immediately, and may request an LM assessment.

§3.5 — The Senate

(1) The Senate comprises two senators per State regardless of population, elected for six-year staggered terms.

(2) No senator may serve more than two consecutive terms without sitting out one full term; upon return, a senator may serve up to one additional term, after which no further Senate service is permitted.

(3) The Senate Speaker is elected by senators and may not serve more than two consecutive full Senate terms as Speaker without sitting out one full Senate term.

(4) The Senate defines its own internal procedures.

(5) The Senate holds exclusive authority over:

— judicial confirmation;

— treaty ratification under §3.6;

— and State-remediation determinations under §15.3.

§3.6 — Treaty and Trade Agreement Ratification

Treaties and compact agreements require ratification by 2/3 of the full seated Senate. Trade agreements concluded by the Legat Consul take effect upon approval by a majority of both chambers. Neither chamber may amend the terms of a concluded international agreement.

The Legat Consul may initiate treaty withdrawal by notice published to the NRS. Withdrawal requires affirmation by 2/3 of the full seated Senate within the period defined by statute, not exceeding 90 days; absent affirmation, the notice lapses. Treaties with recognized indigenous nations under Article XVI may not be unilaterally withdrawn.

§3.6.a — Classification and Dispute Resolution

If the Senate disputes the Legat Consul's classification of an international instrument as a trade agreement, the instrument is treated as a treaty pending resolution. The Senate or Legat Consul may seek expedited judicial determination.

§3.7 — Legislative Process and Passage

Legislation requires an absolute majority of the full seated membership of both chambers unless this Constitution provides otherwise. Higher constitutional thresholds apply to the full seated membership of the chamber or chambers specified. Where this Constitution requires a simple majority of a chamber, it means a majority of members voting, a quorum being present.

If the Legislature fails for one year to enact legislation expressly required by this Constitution, the LM shall publish a finding of non-compliance and the obligation becomes justiciable in the SC. Where the failure directly impairs an Article I right, an affected person may seek direct constitutional relief.

§3.8 — Legislative Oversight

The Legislature may not withhold legislative records, deliberations, votes, or draft legislation from the Monitors. The LM shall review enacted laws for constitutional compliance and may review pending legislation upon request by a member; it may not initiate pre-enactment review on its own motion.

§3.9 — Independent Statutory Agencies

The Legislature may establish independent agencies outside the authority of either executive. The Legislature may not impair the independence of a function this Constitution assigns to an independent agency.

Unless this Constitution provides otherwise, statute governs organization, appointments, qualifications, terms, and oversight. Principal decision-makers exercising a constitutionally assigned independent function shall serve fixed terms and may be removed only for conduct, incapacity, or incompetence, not policy disagreement. Qualification requirements must be neutral and may not be designed to exclude candidates because of political or policy views or prior criticism of government.

§3.10 — Federal Legislative Competence

The Legislature may legislate only within powers assigned to the Republic by this Constitution and powers reasonably necessary to carry those powers into effect. Powers not assigned to the Republic remain with the States and their local governments and are allocated in accordance with §15.8 and §15.8.a. It may not enact legislation that destroys the capacity of States to govern themselves as self-governing communities. Where a valid federal law enacted within federal competence conflicts with State or local law, federal law prevails to the extent of the conflict. The Legislature may establish minimum standards only where this Constitution assigns the Republic responsibility for the subject or where necessary to secure Article I rights or another express constitutional obligation. The Legislature may not direct State or local institutions as instruments of federal administration except where this Constitution expressly provides otherwise. Where this Constitution directs that a federal function, standard, procedure, or framework be established, defined, or regulated, that obligation is fulfilled by statute unless this Constitution specifies otherwise. Where this Constitution assigns a function to a legislative body, independent agency, or other institution, the Legislature shall maintain an institution capable of performing it. No executive or administrative act may substitute for legislation where this Constitution requires statutory action.

§3.11 — Delegation of Authority

The Legislature may by statute delegate defined authority within federal legislative competence to either Consul or to an independent agency under §3.9. A delegation shall state its scope, conditions, and duration. Delegation does not divest the Legislature of that authority; statute prevails over any conflicting exercise of delegated authority. The Legislature may unilaterally rescind a delegation at any time. Exercises of delegated authority shall be attributable in the NRS to both the legislative grant and the exercising authority. The EM shall audit delegated executive authority and publish its findings.

Article IV — The Judicial Architecture

§4.1 — Court Structure

The Republic's judiciary consists of district courts, appellate courts, and the Supreme Court. The Legislature may establish, abolish, and define the jurisdiction of inferior courts by statute, but abolition may not terminate or shorten a sitting judge's term. A judge whose court is abolished completes their term. The judge fills the next vacancy at the same or a lower court level without further confirmation; where more than one such vacancy is open, the Civic Consul chooses which. Where more than one judge whose court was abolished qualifies for a vacancy, the judge with the longest continuous judicial service fills it; ties are resolved by age. Until then the judge retains office and compensation and may serve temporarily under §4.2(5). States may maintain specialized courts. Constitutional questions arising in any proceeding may be referred to the SC.

§4.2 — Judicial Appointments and Independence

(1) The Civic Consul nominates inferior court judges from the Judicial Pool maintained by the Elections Panel under §9.8. The Civic Consul must nominate within 90 days of a vacancy or any shorter period defined by statute. The Senate confirms by a majority of its full seated membership.

(2) Inferior court judges serve a single non-renewable 12-year term and may be removed only for cause, including constitutional breach in judicial office, demonstrated permanent incapacity, serious misconduct, or other conduct- or competence-based grounds established by statute. Judicial disagreement or policy disagreement with a decision is not cause. Statute may establish a mandatory retirement age not below 70.

(3) Removal may occur by 2/3 of both chambers or through a statutory judicial-discipline process under SC oversight. Either chamber may request a JM assessment to inform legislative removal; no Monitor finding is prerequisite to either process.

(4) No public official may direct, threaten, or seek to influence a judge's decision in a pending matter. Judicial compensation may not be reduced during the judge's term.

(5) Upon a vacancy in an inferior federal judicial office, temporary judicial authority shall pass immediately to an eligible serving federal judge under a succession order established by statute. Temporary service does not constitute permanent appointment, does not extend or interrupt the temporary judge's existing term, and ends when a successor assumes the vacant office.

§4.3 — The Supreme Court

The Supreme Court consists of the number of justices established by statute, never fewer than five. Justices serve single non-renewable 12-year terms in staggered classes as nearly equal as practicable. Altering the number of seats requires 2/3 of both chambers. A newly created seat expires if not filled within 18 months; a reduction takes effect only through attrition and may not shorten a sitting justice's term.

An equally divided Court leaves the challenged ruling in effect. A majority of seated justices, including Temporary Associate Justices, constitutes ordinary quorum; constitutional questions require at least five participating justices.

§4.3.a — Supreme Court Justice Removal

A Supreme Court justice may be removed only for constitutional breach in judicial office, demonstrated permanent incapacity, or serious misconduct. Judicial disagreement does not constitute cause. Either chamber may request a JM assessment, but no Monitor finding is prerequisite to removal. Removal requires 2/3 of both chambers in concurrent vote after the grounds are published to the NRS.

§4.4 — Supreme Court Selection

(1) SC justices are nominated by the Civic Consul from the Judicial Pool maintained by the Elections Panel under §9.8. Any pool member meeting the statutory qualifications for Supreme Court appointment is eligible.

(2) The Civic Consul nominates within the period defined by statute following a vacancy, not to exceed 90 days for an anticipated vacancy or 60 days for an unanticipated vacancy.

(3) The Senate must vote within the period defined by statute following nomination, not to exceed 120 days; confirmation requires a majority of the full seated Senate. No deemed confirmation applies.

(4) Upon an SC vacancy, the most senior eligible Appellate Court judge by continuous service becomes Temporary Associate Justice immediately by constitutional operation, with full voting rights until the vacancy is filled; ties are resolved by age. The Civic Consul may not nominate that Temporary Associate Justice to the seat they temporarily hold through the ordinary appointment process, but the justice remains eligible for public confirmation under §4.4.a.

(5) A justice's term runs from confirmation; a justice filling a mid-term vacancy serves only the remainder of the original term. Public confirmation is governed by §4.4.a.

§4.4.a — Public Confirmation

If the Civic Consul fails to nominate, or the Senate fails to vote, within the applicable period under §4.4, the Temporary Associate Justice is submitted for public confirmation at the next federal electoral period. Confirmation requires 60% of votes cast under §7.3. An ordinary nomination and Senate confirmation completed before Elections Panel certification of the ballot ends the public route. If confirmed, the justice serves the remainder of the original term; if rejected, the next eligible Appellate Court judge becomes Temporary Associate Justice and the vacancy process restarts.

The Temporary Associate Justice may advocate publicly for confirmation. A public confirmation vote is not an election for purposes of §8.1, but statute shall preserve its foreign-contribution prohibition and disclosure protections.

§4.5 — Judicial Review and Scope

(1) Courts may declare legislative acts, executive orders, and administrative decisions unconstitutional and void. No political actor may override a constitutional ruling.

(2) Courts decide constitutional and legal questions, not policy questions. Where a statute is ambiguous, courts apply the interpretation most consistent with this Constitution and may not rewrite clear statutory language.

(3) Monitor findings published to the NRS are admissible and must receive due consideration; where a court reaches a different conclusion, it must address the inconsistency in its written decision.

(4) Courts adjudicate only cases involving a concrete, articulable legal injury and may not issue advisory opinions. An organization has standing where at least one member would have standing and the claim is germane to its established constitutional purpose. The Legislature may not leave any category of legal injury without a judicial forum.

(5) The SC has original jurisdiction over:

— constitutional disputes between States, between a State and the federal government, and constitutional challenges to federal statutes;

— disputes between the Legat Consul and Civic Consul concerning their respective constitutional domains under §2.14;

— constitutional challenges involving constitutionally independent institutions where their independence protections make inferior court review structurally inappropriate;

— emergency rights claims brought directly under §16.2;

— and disputes over the consistency of ratified amendments with entrenched provisions under §17.3.

(6) The SC has jurisdiction over constitutional challenges to immediate defensive military authority under §2.2 during active operations and must rule within the period defined by statute, not to exceed 48 hours.

(7) Where conflict between constitutional actors threatens lawful governance or constitutionally required essential services, existing lawful operations continue pending resolution. No actor may use refusal to certify, approve, or coordinate to suspend a constitutional obligation. The SC has expedited jurisdiction over such disputes.

(8) Where this Constitution establishes a deadline for an SC ruling, a majority of seated justices may, before expiry and upon stated reasons, grant one extension for demonstrated necessity. The extension may not exceed the lesser of 30 days or the original period for decision. The SC may issue limited interim protective orders where delay would otherwise cause irreparable harm.

(9) Failure of the SC to rule within a required period does not determine the merits or produce a substantive constitutional outcome. The parties retain any remedy otherwise available under this Constitution.

§4.5.a — Judicial Decisions and Privacy

Judicial decisions shall be public. Courts shall protect personally identifying information where its disclosure is unnecessary to understand the decision, enforce the law, or preserve public accountability, consistent with §1.8 and Article X.

§4.6 — Judgment Recognition

Judgments, official records, and authenticated documents valid in one jurisdiction of the Republic shall be recognized in all others. A judgment may be denied recognition only where the issuing court lacked jurisdiction, the judgment was obtained by fraud, or enforcement would require an act the Legislature has made categorically unenforceable. A judgment contrary to Article I is void under §17.4.

A judgment or status order published to the NRS is self-authenticating and effective throughout the Republic without re-registration. No State or Territory may discriminate in recognition based on the parties or subject matter involved.

Article V — Citizenship and National Identity

§5.1 — Citizenship

Citizenship is acquired by parentage, protection against statelessness, or naturalization. A child is a citizen from birth if at least one parent is a citizen or legal resident, or if the child would otherwise be stateless. Citizens acquire full citizenship rights, including voting and eligibility for office, at 18.

A legal resident may earn citizenship after the continuous residency period and legal qualifications established by statute upon demonstrating civic and constitutional proficiency, or through honorable completion of military or national service. Any required assessment shall test constitutional and civic knowledge, not political opinion or cultural loyalty, and shall be administered by an independent agency under §3.9.

Citizenship may not be revoked as punishment. Naturalized citizenship may be revoked only by judicial finding, on clear and convincing evidence, that it was obtained through material fraud in the application, and never where revocation would cause statelessness. Revocation does not affect derivative citizenship previously acquired by another person.

A child born before a parent acquired legal residency or citizenship who accompanies that parent to the Republic within the period defined by statute, which may not be less than five years, receives derivative status.

§5.1.a — State and Territory Voting Citizenship

Every citizen of the Republic is a voting citizen of exactly one State or Territory, determined by residence or domicile under applicable law consistent with this Constitution. No law may leave a citizen without a State or Territory of voting citizenship. Statute shall resolve conflicting claims; recognition in one jurisdiction terminates prior recognition in another.

§5.2 — Legal Resident Rights

Legal residents may work, enter contracts, own property, and access the social-state systems under Article XII. They do not hold federal voting rights or eligibility for federal office.

§5.3 — Custodial Care of Children

Where removal of a parent or guardian would deprive a citizen or Inhabitant child of their primary caregiver, the Republic shall ensure the child's care, housing, and connection to remaining family, and the removal order is stayed until custodial arrangements are resolved. No child of a citizen or legal resident may be deported because of the child's own documentation status.

Article VI — Immigration and Residency

§6.1 — The Two-Stage Immigration System

Legal residency requires sponsorship under the applicable State or federal framework, followed by federal certification, except as otherwise provided by this Constitution. States retain discretion over whom they sponsor but may not apply sponsorship criteria that violate §1.6. Federal certification categories are established by statute; no ideological screening or nationality-based quotas may be applied at any stage. Any denial must specify the precise ground in writing. Upon completion of both stages, legal residency vests by operation of law; neither executive may delay, condition, or deny that status. The Legislature may establish a Federal Sponsorship Category where federal agencies serve as the State sponsorship stage for applicants serving a defined federal interest; this does not bypass federal certification. The Legislature may set aggregate limits on total applications received and processed in any period, provided limits are applied without §1.6 discrimination. Asylum claims under §1.20 are exempt from ordinary sponsorship, certification, and aggregate application limits; no refusal of sponsorship may extinguish such a claim. Immigration into Territories shall be administered under federal standards, with each Territory entitled to negotiate immigration volumes and applicant qualifications with the Republic, consistent with §1.6 and its Territorial Compact.

§6.2 — Enforcement, Removal, and Appeals

(1) Only the federal government may remove a person from the Republic.

(2) Federal certification denials are judicially challengeable on three grounds:

— criterion not established under the federal certification mandate;

— discriminatory grounds contrary to §1.6;

— or procedural violation affecting the outcome.

(3) State sponsorship denials are not subject to judicial review on their merits but may be challenged for discrimination contrary to §1.6. A court may order reconsideration without discriminatory criteria but may not compel sponsorship.

(4) Where federal certification is denied on national security grounds, a reviewing court may examine classified evidence in camera. If the evidence does not establish a credible, specific, and documented security concern, the denial is vacated and certification must be reconsidered on the remaining criteria.

(5) All persons subject to removal proceedings or challenging a decision under this section retain the protections of Article I, including counsel appointed at public expense where they cannot afford representation.

§6.3 — Asylum and Protection

(1) The Legislature shall provide for necessary shelter, subsistence, and medical care while an asylum claim under §1.20 and any appeal are pending.

(2) An asylum claim must be determined before removal may be executed. A claim found to have been filed solely to delay removal may be expedited under procedures established by statute, without diminishing the right to a fair hearing or the protections of §1.21.

(3) Where the independent federal asylum adjudicative process grants protection, the person acquires legal residency by operation of that determination; State sponsorship and federal certification are not required conditions.

(4) No penalty arising solely from irregular entry may be imposed on a person whose claim is pending or has been granted.

(5) Asylum proceedings must provide a qualified adjudicator; interpreter access; the right to present evidence and witnesses; the right to legal representation with appointed counsel at public expense where the applicant cannot afford representation; a written decision with grounds; and a right of appeal. The asylum proceedings statute must ensure accessibility to persons in Territories and geographically remote areas.

(6) The Legislature shall establish an independent federal asylum adjudicative process by statute, institutionally separate from immigration enforcement, removal, foreign affairs, intelligence, and national-security operations. Adjudicators shall exercise independent judgment, with protections established by statute sufficient to preserve impartial decision-making. The Legislature may regulate organization and procedure but may not diminish the independence or procedural rights guaranteed by this section.

(7) An unaccompanied minor arriving in the Republic is an Inhabitant from the moment of contact and holds full §1.21 protection. A federal legal guardian must be appointed by an independent federal court with jurisdiction over the point of contact within 72 hours.

(8) Detention of an unaccompanied minor must be lawful and necessary and may occur only in a facility specifically designated and resourced for children.

§6.3.a — Unexecuted Removal Orders

A person whose removal cannot be executed shall remain at liberty, subject to all applicable laws of the jurisdiction in which they reside. The Legislature may establish reasonable registration and reporting requirements consistent with Article I.

Article VII — Elections and Federal Office

§7.1 — Consular Election System

(1) The Legat Consul is elected through two concurrent requirements: a national RCV majority and a State plurality qualification. A candidate wins outright by satisfying both.

(2) Where a candidate's national RCV majority reaches or exceeds 60% of votes cast, the State plurality requirement is waived.

(3) Where no candidate wins outright, a runoff is conducted between the national RCV winner and the candidate, other than that winner, who received first-preference pluralities in the most States. The runoff is decided by national majority without a State plurality requirement.

(4) Electoral ties shall be resolved by lot under the supervision of the Elections Panel. The Elections Panel administers and certifies all consular elections.

(5) Territory citizens vote in consular elections and their votes count in the national RCV total, but Territories are excluded from the State plurality calculation. A candidate satisfies the State plurality requirement by receiving more first-preference votes than any other candidate in a majority of the Republic's States.

(6) Consular election certification is final, subject only to timely review by the Supreme Court for material errors in the certification of votes. Candidates, affected State or Territory governments, and the Elections Panel may seek such review under procedures established by statute.

§7.2 — Federal Elections

(1) Federal elections are held at regular intervals: Assembly elections every two years; Senate elections on the staggered six-year cycle; Legat Consul elections every four years.

(2) All federal elections shall use Ranked Choice Voting.

(3) The Legislature defines by statute the specific timing, duration, and structure of the federal electoral period within these constitutional floors.

(4) States administer federal elections through the National Voting System under standards established and enforced by the Elections Panel.

(5) Neither executive nor any State may interfere with federal elections or restrict lawful access to the National Voting System, except as expressly authorized by this Constitution.

(6) The Republic shall provide the financial and technical assistance necessary for every State to meet federal election standards. Assistance is subject to Elections Panel oversight.

§7.2.a — Special Elections and Postponements

Special elections shall be administered by the Elections Panel under procedures established by statute. Where the Elections Panel certifies that a natural disaster or catastrophic infrastructure failure makes a federal election impossible across a substantial portion of the Republic, the Legislature may postpone the affected election for up to 90 days by a two-thirds vote of each chamber. The mandates of affected officeholders extend until certification of the postponed election. Any further postponement requires renewed Elections Panel certification that holding the affected election remains impossible and renewed legislative approval by the same threshold. Elections shall proceed as soon as practicable once the impediment has ended. Elections Panel determinations are subject to expedited judicial review.

§7.3 — Electoral Supermajority Threshold

Except for constitutional-amendment referendums governed by §17.1, any supermajority required by this Constitution in a direct vote of the citizens is 60% of votes cast. This threshold may be changed only by constitutional amendment and does not alter separately established participation or turnout requirements.

§7.4 — Eligibility and Disclosure for Federal Office

(1) Every candidate for federal office and every person assuming federal office without election shall publicly disclose their criminal history under penalty of perjury. A current and accurate disclosure satisfies this requirement for subsequent appointments or elevations. Knowingly false or materially incomplete disclosure constitutes a federal offense.

(2) No criminal conviction disqualifies a person from federal office except a conviction for insurrection, rebellion, or treason against the Republic, or subversion of a federal election. These grounds are exhaustive and require conviction rather than accusation or pending charges.

(3) A person who leaves a constitutional office before the expiration of their term is deemed to have completed that term for purposes of term limits and required cooling-off periods. Departure from office does not shorten, waive, or extend any cooling-off period otherwise required by this Constitution.

(4) A person constitutionally ineligible for an office may not exercise its authority, including through succession or acting service, except where this Constitution expressly provides otherwise. Succession passes to the next eligible person.

(5) An office-specific restriction does not disqualify a person from another constitutional office unless this Constitution expressly provides otherwise.

(6) A candidate disqualified by the Elections Panel may appeal to the Appellate Court within 14 days, unless another period is established by statute. The Court shall determine whether the applicable eligibility requirements were correctly applied and resolve the appeal in sufficient time to permit the candidate's participation in the scheduled election.

§7.5 — Removal from Federal Office

A federal officeholder whose tenure or removal is governed by this Constitution may be removed only through a mechanism established or expressly authorized by this Constitution. Criminal liability remains unaffected.

§7.6 — Continuity and Acting Service

Selection and confirmation procedures for fixed-term constitutional offices shall provide for uninterrupted succession.

§7.7 — Official Capacity Protection

Constitutional officers and persons acting within the authority of a constitutional office are protected from personal civil liability for lawful acts performed within their official authority. This protection does not extend to criminal conduct, acts outside official authority, or violations of this Constitution.

§7.8 — Separation of Branch Authority

No person may simultaneously hold office in more than one branch of government, except when temporarily exercising acting authority under this Constitution. During such acting service, the person retains their original office or mandate but may not exercise any authority of that office. That authority resumes upon the conclusion of acting service. The body that selects the officer may designate an interim holder of the office's functions for the duration of acting service.

§7.9 — Inviolability of Electoral Mandates

An elected constitutional mandate may not be shortened, suspended, or terminated except through a mechanism expressly provided or authorized by this Constitution. No additional mechanism for terminating an elected mandate, including popular recall, may be established by statute.

§7.10 — Ethics and Financial Disclosure

(1) A financial interest is disqualifying where it creates a direct and material conflict with the impartial exercise of official duties.

(2) Except for Monitor Generals as provided in Article IX, constitutional officers shall disclose their financial interests, holdings, income sources, and liabilities to the Monitor responsible for their office, within a period defined by statute after taking office and annually thereafter. Disclosures shall be published to the NRS.

(3) An officer with a direct financial interest in a decision within their authority must recuse themselves. This requirement is self-executing.

(4) Constitutional officers may not accept gifts exceeding a de minimis threshold established by statute; absent such statute, the threshold is zero. Gifts received in an official capacity belong to the Republic and must be disclosed and transferred to the appropriate public authority regardless of value.

(5) Each Monitor may investigate violations within its mandate and refer matters warranting further action to the appropriate authority.

§7.11 — Codes of Conduct and Conflicts of Interest

The Legislature may establish codes of conduct, disclosure requirements, conflict-of-interest standards, and disciplinary procedures for constitutional offices outside the Legislature. Such rules may not diminish constitutional authority, tenure, or institutional independence.

A constitutional officer with a personal, financial, or other material connection to a matter within their authority shall publicly disclose that connection and state whether they will participate or recuse themselves, with reasons for that decision. The disclosure and explanation shall be published to the NRS.

§7.12 — Post-Service Restrictions

Constitutional officers may not exploit non-public information, privileged access, or official influence obtained through their service for private benefit after leaving office. The Legislature shall establish post-service restrictions and cooling-off periods by statute. The responsible Monitor shall audit compliance; enforcement rests with the appropriate legal authority.

§7.13 — Federal Public Service Ethics

The Legislature shall establish disclosure and recusal requirements for federal employees and military personnel whose duties present material conflicts of interest. The responsible Monitor shall audit institutional compliance.

§7.14 — Compensation of Federal Officials

Federal officials may not determine their own compensation or that of their direct supervisors, except as expressly authorized by this Constitution. Compensation shall be established by statute. Changes to the compensation of elected constitutional officers take effect only after the next election for the affected office following enactment. Official benefits and accommodations must reflect the functional requirements of the office.

§7.15 — Authority by Constitutional Operation

Authority conferred, transferred, or assumed by operation of this Constitution vests immediately upon satisfaction of the constitutional conditions, without oath, acceptance, publication, or other implementing act unless expressly required by this Constitution. The change shall be recorded to the NRS as soon as practicable. The NRS is the authoritative public record but does not confer authority.

Article VIII — Electoral Finance and Campaign Conduct

§8.1 — Electoral Finance

All contributions to electoral campaigns must be disclosed in full to the Elections Panel, including the identity of every contributor and the amount given, without threshold or exception. The Elections Panel publishes contribution records to the NRS; publication may present contributions below a threshold defined by statute in aggregate or generalized form to protect the privacy of individual contributors, but no contribution may be withheld from disclosure to the Panel. Anonymous contributions are prohibited.

Citizens and lawful residents may contribute to electoral campaigns, subject to the same individual contribution limits established by statute. Corporate and organizational contributions are barred. Contributions from foreign governments, foreign nationals other than lawful residents, and foreign-controlled entities are prohibited. No person may make, receive, or fund an electoral contribution or independent expenditure on behalf of, at the direction of, or with funds from such a source, directly or through an intermediary.

Independent expenditures made in support of an electoral campaign are subject to the same disclosure requirements as direct contributions but are not subject to contribution limits. Expenditures coordinated with a campaign are treated as direct contributions.

Financial contributions to electoral campaigns and expenditures coordinated with a campaign are subject to regulation under this section and are not protected as speech or associational activity under §1.5. Independent political expression remains protected under §1.5, subject to the disclosure requirements and foreign-source prohibitions of this section.

§8.2 — Campaign Conduct

Candidate impersonation, vote suppression, and interference with election administration are prohibited. Campaign communications must clearly identify their sponsor. The Elections Panel administers electoral conduct requirements; the Legislature establishes sanctions by statute. The Elections Panel may investigate objectively identifiable violations of this section and establish technical and administrative standards, but may not create substantive restrictions on political expression or judge the truthfulness, political merits, or opinions expressed in campaign communications.

Foreign governments, foreign nationals, and foreign-controlled entities may not engage in covert electoral operations, prohibited campaign financing, candidate impersonation, manipulation of electoral administration, or other unlawful interference with Republic elections. A candidate who knowingly accepts prohibited foreign electoral assistance is disqualified from that election cycle by determination of the Elections Panel after notice and an opportunity to respond, subject to appeal under §7.4(6).

Constitutional officeholders may not use public resources, personnel, or official authority for electoral campaign purposes, whether campaigning for reelection or for another office. Ordinary official duties and communications undertaken in good faith do not constitute campaign activity merely because an election is approaching.

§8.3 — Public Spectrum Access for Campaigns

Licensees operating on public broadcast spectrum, including television, radio, and licensed carriers of automated political communications, shall provide qualified candidates equal free campaign access during the federal electoral period. The terms and quantity of access shall be established by statute. This obligation does not require equal editorial or journalistic coverage. The Elections Panel shall certify compliance.

§8.4 — Public Campaign Financing

The Legislature shall by statute establish a public campaign financing system available to all qualified candidates for federal office on equal terms. Public financing shall provide qualified candidates an initial allocation sufficient to establish a campaign and communicate with voters. The amount and administration of that allocation shall be established by statute and reviewed each electoral cycle. Acceptance of public support does not bar a candidate from private fundraising under §8.1, and no candidate may be disadvantaged in eligibility, ballot access, or access under §8.3 by reason of participating. The Elections Panel administers the system and publishes annual compliance findings.

Article IX — The Monitors

§9.1 — Three Monitors

The Republic maintains three constitutionally independent Monitors — Legislative (LM), Executive (EM), and Judicial (JM) — each selected under §9.2. Monitors hold an information-only mandate: they observe constitutional processes, verify compliance, and publish findings. Findings are not binding on any constitutional actor and are not a prerequisite for any legal proceeding or governmental function. Each Monitor General serves a 10-year non-renewable term. Failure of a Monitor to act does not extinguish constitutional authority or suspend any constitutional obligation. Any constitutional officer, chamber, or body may request a focused assessment from any Monitor within that Monitor's mandate; the Monitor publishes the assessment by the requested date where practicable; a requesting party may proceed whether or not the assessment has been published. Persistent non-responsiveness to reasonable requests may be published by the other two Monitors as a non-responsiveness finding. Once a Monitor undertakes work under constitutional authority, the work must be completed and published even if it becomes late, moot, withdrawn, or overtaken by events. A missed deadline may affect any consequence expressly attached to the deadline but does not erase the publication duty. Work may be discontinued only where completion has become factually impossible; the reason for discontinuation and all completed work product must still be published to the NRS.

§9.1.a — The Legislative Monitor

The LM audits the Legislature for fiscal accuracy and constitutional compliance. Responsibilities include auditing the population census for constitutional compliance; reviewing Assembly district maps for compliance with the criteria established in §3.3 and publishing its findings; auditing the Elections Panel's administration of the referendum eligibility process; auditing legislative mandate compliance; and publishing an annual compliance report.

§9.1.b — The Executive Monitor

The EM audits both executives and the Monetary Authority. Annual responsibilities include assessing military compliance under §§14.1 and 14.2, including whether military force was used for an authorized purpose, whether legislative authorization and allocation requirements were observed, and whether military orders were published to the NRS within the required period; independently auditing compliance with the judicial authorization requirement under §2.3; conducting factual clemency reviews when requested under §2.12; reviewing disclosure records for constitutional appointments; and auditing electoral finance within the period defined by statute following any election. The EM audits constitutional officers for dereliction — failure to perform a constitutionally mandated function within the required period where that failure was not caused by circumstances genuinely beyond the officer's control. Political disagreement with a constitutional requirement is not a defense. This audit concerns the performance of constitutionally required duties and does not authorize review of the political merits of legislative decisions or the legal reasoning of judicial decisions.

§9.1.c — The Judicial Monitor

The JM audits the courts for judicial scope and independence, the Elections Panel for electoral integrity compliance, and compliance with constitutional treaty and compact obligations. Its specific audit responsibilities are established under §9.4.

§9.1.d — Monitor General Term Expiry and Vacancy

A Monitor General's constitutional authority terminates automatically at the moment their term expires — no further act or proceeding is required. Any official act taken after term expiry is constitutionally void. Where a Monitor General's term expires without a confirmed successor ready to assume office, or where an unexpected vacancy arises

mid-term through death, resignation, or removal, the most senior eligible member of the affected Monitor's candidate pool by continuous pool tenure who accepts designation serves as Acting Monitor General until a successor assumes authority under §9.3; ties in pool tenure are resolved by age. The same acting mechanism activates during a suspension under §9.1.e or §9.7.a and ends upon restoration of the original Monitor General's authority or commencement of a successor's authority. The Acting Monitor General holds full constitutional authority of the office but is not eligible for permanent appointment to the position in which they serve; upon conclusion of acting service they return to the candidate pool. The JMC records the designation and both executives are notified immediately. Suspension does not vacate the office, interrupt its term, or affect compensation or benefits.

§9.1.e — Monitor General Incapacity

(1) A Monitor General is temporarily unable to exercise the office upon the Monitor General's own declaration or a joint determination by the other two Monitor Generals that the Monitor General cannot exercise the functions of office. The declaration or determination must state its functional grounds, and the acting mechanism under §9.1.d activates immediately. Political or policy disagreement alone is not incapacity; publication of grounds must protect constitutionally confidential personal information.

(2) A Monitor General who declares their own incapacity may declare it ended, restoring authority 24 hours after publication to the NRS. Self-declared incapacity has no fixed maximum duration. After a first joint incapacity determination, the affected Monitor General may likewise declare recovery, restoring authority 24 hours after publication, subject to subsections (3) and (5).

(3) Where the other two Monitor Generals jointly determine incapacity again on substantially the same grounds within 90 days after a recovery declaration, the renewed determination immediately suspends authority. Restoration during the following 30 days requires agreement of the other two Monitor Generals or relief from the SC.

(4) The affected Monitor General may seek expedited SC review of a joint determination or continuing suspension. Review is limited to lawful invocation and whether the stated grounds concern inability to exercise the functions of the office. Judicial review is not a prerequisite to suspension.

(5) A jointly determined suspension ends 30 days after its initial publication unless the other two Monitor Generals request a national extension vote from the Elections Panel before that deadline. The request specifies an end date no later than six months after the initial joint determination on substantially the same grounds. Timely filing continues the suspension pending certification, which must occur within 90 days of that initial determination. An extension requires 60% of votes cast under §7.3 with participation by at least 55% of eligible citizens. If the extension fails, certification does not occur by the deadline, or the approved end date arrives, the suspension ends automatically unless another independent constitutional ground for suspension applies. Repeated proceedings on substantially identical grounds cannot circumvent this maximum.

§9.2 — Selection and Independence

Each Monitor General shall be selected through a process that excludes the institution subject to that Monitor's oversight from controlling the selection.

§9.3 — Monitor General Selection

All Monitor General confirmations follow the same process: the nominated or lottery-selected candidate is confirmed by national popular vote at the next federal electoral period by simple majority; timing is defined by statute to ensure seamless succession; if the confirmation vote fails, the §9.1.d acting mechanism activates and a new selection must begin within 60 days. The Elections Panel administers all confirmation votes. The LM Monitor General is nominated by the SC from the pool maintained by the Elections Panel and audited jointly by the EM and JM. Where the SC fails to nominate an LM Monitor General within 60 days of a vacancy, the JMC shall select a nominee by public lottery

from the eligible LM candidate pool. The nominee remains subject to confirmation by national popular vote under this section. The EM Monitor General is nominated jointly by the Assembly Speaker and Senate Speaker from the pool maintained by the Elections Panel and audited jointly by the LM and JM, with JM audit findings on the nominee's disclosure record published to the NRS before the vote; where the Speakers fail to jointly nominate within 60 days of a vacancy, the Senate selects from the pool by 2/3 vote. The JM Monitor General is selected by public lottery under §9.8 from the JM Candidate Pool under §9.4. No two Monitor General full terms may be scheduled to begin within 18 months of each other; service for the remainder of a predecessor's term does not commence a new term for the purposes of this spacing requirement. For a scheduled succession, the confirmed successor assumes full authority at the precise moment the incumbent's term concludes. A successor confirmed following an unscheduled vacancy assumes full authority immediately upon certification of the confirmation result and serves the remainder of the original term. Any person confirmed by the public to serve a full term as a Monitor General is not subsequently eligible to enter any Monitor General pool. A person confirmed by national popular vote to serve the remainder of a predecessor's term following an unscheduled vacancy under this section may not subsequently enter the Monitor General pool for that same capacity, but remains eligible for the pools of the other two capacities if otherwise qualified. Acting service under §9.1.d does not constitute confirmation for purposes of this provision.

§9.4 — Judicial Monitor Audit Mandate

(1) The JM monitors the court system, audits the Elections Panel's administration of the Judicial Pool, and conducts compliance audits across compact obligations.

(2) Annual audit responsibilities include court operations for scope compliance and independence; the Elections Panel for electoral integrity; SC independence; inferior court compliance with jurisdictional limits; judicial compliance concerning Article XIV and Article XIX; and compliance with Article XVI treaty obligations and Article XX compacts.

(3) The Elections Panel maintains the JM Candidate Pool. Eligibility is limited to former Republic judges — persons who have completed judicial service on a court of record at the trial court level or above, whether in a State court or the Republic's federal court structure — who have been out of active judicial office for at least one year. Former SC justices must have been out of SC service for at least five years.

(4) The JM holds no role in constituting or certifying its own candidate pool. The Elections Panel applies the eligibility criteria and enters qualifying applicants into the pool.

(5) The LM's ongoing audit encompasses verification of judicial service records; the EM's ongoing audit encompasses financial disclosure review.

(6) The outgoing JM Monitor General does not participate in the JM Candidate Pool lottery.

§9.4.a — Judicial Pool — Eligibility Criteria

Any citizen meeting the following eligibility criteria may apply directly to the Elections Panel for entry into the Judicial Pool, from which all federal judicial appointments are drawn: at least 15 years of legal practice or 10 years of judicial service; no current government position; no disqualifying financial interest as defined in §7.10. The Elections Panel applies the stated eligibility criteria and enters qualifying applicants into the Judicial Pool. A person who has served as a Supreme Court justice may not subsequently re-enter the Judicial Pool or be nominated to any federal judicial appointment. A person who has served in any other federal judicial appointment may not be nominated again to the same court, but remains eligible for nomination to a different federal court. Temporary or acting judicial service does not constitute service for purposes of this provision.

§9.5 — Monitor Operations

Every Monitor finding, report, and discrepancy notice is published to the NRS permanently and free of charge and is exempt from classification, but must protect information whose disclosure would violate constitutional rights or compromise lawful security interests. No official outside the issuing Monitor may suppress, delay, classify, or alter a Monitor report before publication. Internal review for factual accuracy and compliance with constitutional disclosure protections is permitted but may not be used to suppress findings or obstruct required publication. Any Monitor staff member may publish a minority report directly to the NRS if they believe a finding has been improperly omitted or suppressed. Minority reports are subject to the same protections for constitutionally confidential information and lawful security interests as official Monitor reports. No staff member may be disciplined or retaliated against for making a publication authorized by this section. All three Monitors jointly publish an annual State of the Republic report on a fixed date regardless of whether any political actor requests it. Where a compliance question spans multiple Monitor mandates, the Monitors may conduct a joint investigation; neither Monitor General may veto the other's contribution. Monitors have unrestricted access to records, personnel, facilities, and systems within their constitutional audit mandates. Access to confidential or classified information does not authorize its public disclosure. Obstruction of a Monitor acting within its constitutional audit mandate must be documented and reported to the NRS and the responsible body. Where an applicable compliance standard has been published under §9.5.a, the obstruction shall also be recorded as a Fail. Every finding, report, and assessment published under this Article is delivered on publication to the body or officer responsible for the subject matter, and to the Speaker of each legislative chamber. Delivery is a matter of record and imposes no obligation to act.

§9.5.a — Compliance Standards and Findings

The JMC defines and publishes the compliance standard for each category of audit — the criteria by which each aspect of a finding is determined Pass or Fail, evaluated separately rather than as a single whole-entity judgment. No Monitor may issue a Pass or Fail finding for a category of audit for which the JMC has not yet published a standard; the underlying audit function continues, but produces no Pass or Fail determination until a standard exists. The JMC may adopt a single standard or separate standards tailored to distinct categories of audit. For each standard, the JMC publishes both the criteria and the methodology by which the criteria were developed. Where more than one standard exists, every published finding identifies which standard was applied. Every Monitor report requires the body or officer responsible for its subject matter to publish its own account to the NRS within the period defined by statute. The response need not agree with the Monitor's findings. A change to any standard takes effect only for findings arising after the change is published. This prospective-only protection applies equally to the adoption of a new category of standard for any audit subject with a finding already pending at the time of publication.

§9.5.b — Agency Accountability

Monitor findings and reports do not substitute for a responsible body's independent obligation to perform its constitutional and statutory duties or to act on matters within its operational authority.

§9.6 — Monitor Minimum Funding Guarantee

The annual appropriation for each Monitor, the Elections Panel, and the NRS Panel may not fall below the prior fiscal year's funding level adjusted to preserve equivalent purchasing power, whether prices rise or fall, without a 2/3 concurrent vote of both chambers. The Monetary Authority certifies each body's prior-year funding level adjusted for the change in the price level and publishes the certified floor to the NRS before the Legislature begins its annual budget process. Where a budget reduces a protected body below its certified floor without the required supermajority, that certified floor takes effect automatically for that body by constitutional operation.

§9.7 — Joint Monitor Council

(1) The three Monitor Generals jointly constitute the JMC as the standing coordination body for matters crossing Monitor jurisdictions.

(2) The JMC houses joint constitutional functions expressly assigned to it by this Constitution, including the constitutional-pool lotteries assigned under §9.8.

(3) The chair of any joint session is the Monitor General whose domain covers the primary subject matter; where all domains are equally engaged, the chair rotates annually.

(4) Two of the three Monitor Generals constitute a quorum for all JMC functions; no mandatory joint function may be permanently blocked by a single Monitor General's non-participation. Where a Monitor General does not participate in a joint function, their position — if stated — is published to the NRS alongside the joint determination.

(5) Where the Monitor Generals cannot reach consensus on a joint matter, each publishes their individual assessment and the disagreement is noted in the permanent NRS record.

(6) The JMC conducts an annual NRS audit covering both operational compliance — whether the NRS is functioning as constitutionally required, accessible, and free of single points of failure — and content integrity — whether all constitutionally required publications across all domains have been made and no records have been altered or deleted.

(7) The JMC has no authority to override the individual mandate of any Monitor. Where this Constitution assigns a function to the JMC, the JMC exercises that function collectively by majority vote of participating Monitor Generals; a dissenting Monitor General's position is published alongside.

(8) The JMC may delegate operational responsibility for any assigned function to one or more individual Monitor Generals without transferring constitutional accountability for the function; it may also coordinate resource allocation across Monitor offices as needed to fulfill assigned functions, provided no Monitor's capacity to fulfill their individual mandate is diminished. Delegation of operational responsibility does not transfer any decision-making authority that this Constitution assigns to the JMC collectively.

§9.7.a — Institutional Compromise Protocol

Where two Monitor Generals jointly determine that the third is operating in demonstrable bad faith, they shall publish the determination with its stated evidence. The affected Monitor General's authority is suspended immediately, and the acting mechanism under §9.1.d activates. Suspension and extension follow the initial-duration, public-vote, participation, certification, six-month maximum, automatic-expiration, and judicial-challenge procedures established for jointly determined incapacity under §9.1.e. A unilateral declaration of recovery does not end a suspension for demonstrable bad faith. Repeated proceedings on substantially identical conduct do not restart the six-month period. Suspension under this section is not removal; permanent removal is governed exclusively by §9.9.

§9.8 — Constitutional Pool Framework

(1) The Elections Panel maintains all constitutional candidate registries and pools, including the Judicial Pool, and administers public access to their records via the NRS.

(2) Each pool is subject to ongoing Monitor audit.

(3) Lottery draws for constitutional candidate pools assigned by this Article are conducted by the JMC in a public session.

(4) The constitutional minimum for all pools is five eligible members. Where a pool falls below five, the Monitor responsible for auditing that pool shall publish a compliance breach.

(5) Where a constitutional candidate pool falls below its required minimum, the Elections Panel shall conduct an expedited eligibility review of applicants to restore the pool. Ordinary eligibility requirements remain applicable and all additions remain subject to Monitor audit.

(6) Eligibility criteria for all pools are strictly objective — years of practice or service, office status, and financial interests as defined under §7.10. No registry administrator may apply criteria relating to legal philosophy, judicial temperament, ideological orientation, or political association; any exclusion on such grounds is constitutionally void.

(7) Where an applicant is excluded or removed, the administering body must publish the specific grounds to the NRS within 14 days; the applicant may appeal to the SC within 14 days of that publication on the sole ground that the eligibility criteria were misapplied. Appeals arising from expedited restoration receive expedited consideration without diminishing notice, stated grounds, or appeal.

(8) Changes to eligibility criteria apply prospectively only and do not affect persons already entered in a constitutional pool or registry under the criteria applicable at the time of their entry. This protection does not exempt a member from continuing constitutional eligibility requirements, including the prohibition on disqualifying financial interests under §7.10.

§9.9 — Constitutional Officer Removal — Standard Track

(1) This section governs for-cause removal of constitutionally confirmed independent officers other than federal judges, whose removal is governed by §4.2 or §4.3.a, and elected executives. Removal of Monitor Generals follows subsections (2) through (5); removal of other officers within this section's scope follows subsections (6) and (7).

(2) Removal of a Monitor General is initiated by the branch or branches that Monitor does not audit: for the Legislative Monitor General, jointly by both executives; for the Executive Monitor General, by the Legislature by concurrent resolution of both chambers; for the Judicial Monitor General, jointly by the Legislature by concurrent resolution of both chambers and by both executives. The initiating authority files stated grounds to the NRS. Filing does not suspend the Monitor General's authority. Temporary suspension may occur only under another express constitutional provision.

(3) The Elections Panel administers a national removal referendum no later than 90 days after filing, or at the next regularly scheduled federal election, whichever comes first. Removal requires 60% of votes cast under §7.3 and participation by at least 55% of eligible citizens.

(4) If the referendum fails or is not administered within the required period, the removal proceeding closes without removing the Monitor General.

(5) Following a failed removal referendum, removal may not be reinitiated against the same Monitor General on the same or substantially similar grounds arising from the same conduct for the remainder of that Monitor General's term. This restriction does not bar proceedings based on materially new conduct or evidence.

(6) For other independent officers within this section's scope, a resolution supported by one-third of either legislative chamber, or two of the three Monitor Generals acting jointly, may initiate removal by publishing stated grounds to the NRS. Initiation does not itself suspend authority. Removal requires a concurrent vote of 2/3 of the full seated membership of each legislative chamber, on grounds within the statutory removal categories for that office.

(7) The Legislature defines enumerated removal categories for each constitutionally confirmed office by statute. Changes to removal categories apply prospectively and may not govern proceedings initiated before the changes take effect.

§9.9.a — Monitor General Disclosure

Monitor Generals disclose financial interests under the same substantive requirements and schedule established in §7.10, with disclosure published directly to the NRS; no Monitor reviews another Monitor General's disclosure. The Legislature must include concealment of a disqualifying financial interest, or failure to recuse where required, among the statutory removal categories established for Monitor Generals under §9.9.

Article X — The National Record System

§10.1 — National Record System

(1) The National Record System is the permanent, tamper-evident public record of the Republic — freely accessible to every Inhabitant at no cost.

(2) Every constitutional act, order, finding, certification, designation, declaration, and determination made under this Constitution is published to the NRS as a permanent record; no provision need state this obligation individually. Official records and materials created, received, maintained, or produced in the exercise of official duties are property of the Republic. No officer may remove, destroy, conceal, or retain them as personal property upon leaving office. Their publication, access, retention, and classification are governed by this Article and applicable law.

(3) All electoral records — voter registration, ballot counts, audit trails, certification documents, constitutionally required campaign-finance records, electoral-administration records, direct-democracy records, and constitutional-amendment records — must be published to the NRS within the applicable constitutional or statutory timeframe. No classification exception applies to those records. Nothing in this subsection permits disclosure of an individual voter's ballot or information that would defeat ballot secrecy under §11.2.

(4) Where this Constitution provides a specific publication timeline it governs. Otherwise a constitutionally required record is published as soon as possible after the act or event to which it relates.

(5) Records may not be deleted, altered, or reclassified after publication; corrections are published as new entries alongside the original.

(6) Where the NRS Panel determines by unanimous vote that a record poses an imminent, specific, and documented threat to individual safety, it may temporarily restrict access for up to 30 days pending judicial review; the reviewing court must rule within 14 days; the record is permanently restored unless the court confirms the restriction on the narrowest possible grounds; the applicable court is designated by statute. The original timestamp and the restriction record both remain as permanent NRS entries. Where the reviewing court declines to confirm a restriction, the same record may not be restricted again under this subsection on the same or substantially similar grounds.

(7) The JM maintains a continuously operating parallel authentication system, physically independent of the NRS, capable of preserving all constitutional acts with full constitutional effect from issuance; upon NRS restoration, parallel records migrate with their original timestamps. Where the NRS has not been restored within 180 days, the parallel system becomes the constitutional record.

(8) The Legislature defines technical standards for both systems by statute. Records published by any Republic jurisdiction are recognized as authentic without re-certification.

§10.2 — Classification Criteria

Government records may be classified only on grounds the Legislature defines by statute. Classification to conceal a constitutional violation, an illegal order, policy disagreement, or political embarrassment is prohibited and void; classification used to conceal a constitutional violation or illegal order is a constitutional offense. The classifying authority must state the statutory ground at the time of classification. No record may remain classified beyond 25 years from the date of original classification. A single 5-year extension may be granted where the responsible executive publishes a justification to the EM; the EM assesses whether the justification meets the statutory standard and publishes its finding to the NRS. On expiry, the NRS Panel publishes the declassified record within 30 days of the classification ceiling date; this obligation is automatic and requires no further government act. Any person with

standing may at any time petition the applicable court, designated by statute, for release of a classified record. The court orders release of every portion whose disclosure would not itself satisfy the statutory ground under which the record was classified; any redactions, and the statutory ground for each, are published with the released portion.

Article XI — NRS Panel and Elections Panel

§11.1 — NRS Panel and Elections Panel

(1) Two constitutionally independent panels — the NRS Panel and the Elections Panel — operate the Republic's permanent record infrastructure and electoral systems respectively.

(2) The Elections Panel establishes and maintains the National Voting System, sets administrative and technical standards for federal elections, certifies election equipment for state procurement, audits state compliance with federal election standards, administers referenda and confirmation votes, and certifies all federal election results.

(3) Each panel is operationally independent of the other, of both executives, and of the Legislature in the exercise of its functions.

(4) The Legislature defines qualification standards, panel composition, term lengths, and operational parameters for each panel by statute; panel members are appointed through the independent agency process under §3.9. Each panel must have no fewer than five members at all times; the Legislature may not reduce either panel below this floor. No single appointing authority may hold a majority of appointments to either panel within any single electoral term.

(5) The Chair of each panel is its most senior member by continuous service; ties are resolved by age.

(6) Each panel exercises only those ministerial functions expressly granted by this Constitution and by statute. Under any procedure statute establishes, or absent statute by majority vote of its seated members, each panel may adopt temporary technical measures in response to imminent security threats or system failures within its domain; such measures may not change electoral rules, timelines, or NRS record permanence, and expire after 72 hours. A panel may adopt a further measure only on a fresh published determination of an imminent threat.

(7) Where either Panel falls below the five-member floor through resignation, removal, disqualification, or any other cause, the remaining members may by majority vote designate a qualified civil servant employed by that Panel as an Acting member, not to exceed the period defined by statute, which may not exceed 180 days. Where the remaining members are unable to designate, the Civic Consul designates. Acting members designated by the Civic Consul may not at any time constitute a majority of the Panel's seated membership. An Acting member exercises all authorities of a full member during the designation, and the designation does not affect the ordinary process for filling the vacancy permanently.

§11.2 — NVS Properties and Voting Rights

The National Voting System must maintain three constitutionally required properties simultaneously: ballot secrecy (technically impossible to link any vote to any voter, including in post-election audits), public auditability (aggregate results mathematically verifiable by anyone with NRS access; every vote individually verifiable by the voter without revealing identity to any other party), and resilience (capable of operating in degraded conditions without compromising either secrecy or auditability). No information generated by the NVS — including voter participation records — may be shared with any government body or foreign entity for any purpose other than administering the relevant election. Eligibility verification may not store or expose voter identity within the NVS. No State may impose requirements or intermediaries that effectively reduce NVS access or impose burdens not present in direct NVS participation. The Elections Panel shall inform every eligible citizen of their federal races and how to vote before each federal election.

§11.3 — State Election Non-Compliance

Where the Elections Panel finds through audit that a State's election administration materially fails to meet the constitutional standards required under §11.1, it publishes the finding to the NRS and notifies the State formally. The State has the period defined by statute to cure the identified failures. Where the Panel certifies a State's election system as non-compliant before an election, it may withhold result certification for affected districts pending compliance or a special election under §7.2.a. Where the State does not cure within the cure period, the Elections Panel administers the relevant federal election directly within that State for that electoral period only; State administration resumes automatically at the conclusion of that period. The State may challenge the Elections Panel's finding under §4.5's original jurisdiction provisions governing State-federal disputes. Neither a finding of non-compliance nor withholding of certification affects the validity of votes cast.

Article XII — Social State and Economic Rights

§12.1 — The Social State

The Republic is a social state. Every Inhabitant is entitled to conditions of life consistent with human dignity, which the Republic fulfills through three mandatory systems: universally accessible healthcare insurance; social assistance sufficient to maintain basic material conditions; and free compulsory education for every child. The Legislature establishes the framework for each by statute.

§12.1.a — The Monetary Authority

The Monetary Authority is a constitutionally mandated institution independent of both executives and the Legislature in the exercise of its constitutional functions, governed by §3.9 except as this section provides. It is responsible for monetary policy, currency issuance, fiscal integrity certification, and the National Endowment functions assigned by this Article. The MA has exclusive authority to issue the Republic's currency; no State, Territory, or other body may issue instruments intended to function as legal tender within the Republic. Principal decision-makers exercising the MA's constitutional authority must be selected through an independent candidate process and confirmed by 2/3 of the Senate. No single officer or institution may appoint or remove a majority of the MA's principal decision-makers. Their terms must be staggered so that ordinary electoral turnover cannot replace the entire leadership at once. Disagreement over monetary policy, economic judgment, or a lawful certification is not cause for removal. A vacancy does not suspend or transfer the MA's constitutional functions.

§12.1.b — Monetary Authority Reporting

The Monetary Authority publishes a State of the Economy report to the Assembly, the Legat Consul, and the Civic Consul no less than semi-annually; the Legislature may by statute require a more frequent cycle. Each report includes the Monetary Authority's account of relevant findings from the preceding period under §9.1.b and any applicable §9.5.a compliance findings. Where a Monitor publishes a Fail the publishing Monitor identifies as relevant to the Monetary Authority's mandate, the Monetary Authority must, within 30 days, submit a report addressing the finding to the Assembly, the Legat Consul, and the Civic Consul, published to the NRS. Submission of that report discharges the Monetary Authority's obligation under this provision.

§12.2 — Fiscal Accountability

(1) The annual budget originates in the Assembly. Each Consul prepares and submits to the Assembly a proposed budget for their respective domain, published to the NRS upon submission, by the deadline defined by statute; absent a statutory deadline, no later than 120 days before the start of the fiscal year.

(2) The Assembly is not bound by the Consuls' proposals.

(3) A Consul's failure to submit a domain proposal does not delay or bar the budget process; the Assembly proceeds.

(4) The Legislature must pass a balanced budget or publish a structural deficit justification reviewed by the MA for fiscal accuracy.

(5) Structural deficits above the threshold defined by the MA require a published plan for return to balance.

(6) Where no budget is enacted by the start of the fiscal year, or any earlier deadline defined by statute, an interim automatic appropriation takes effect by constitutional operation covering:

— judicial operations, active defense authorizations under §14.2, and social state continuity under §12.1;

— civil service compensation;

— and debt service obligations.

(7) The interim appropriation continues at the prior fiscal year's inflation-adjusted level until a budget is enacted; no new programs may be initiated or expanded under the interim appropriation.

(8) Where no budget is enacted when the interim appropriation takes effect, the pay of all members of both chambers is withheld from that date and released only upon budget enactment.

(9) The Legislature must fund the National Endowment by appropriation in years of fiscal surplus. The EM assesses compliance with this requirement annually.

§12.3 — Taxing Power and National Revenue Fund

The Legislature has exclusive authority to levy taxes, duties, and tariffs by statute. States, Territories, and local governments retain authority to tax within their own jurisdictions, subject to §12.5 and the non-discrimination requirements of §1.6. All public money received by the Republic — including tax revenue, fees, and other receipts — is deposited into the National Revenue Fund. No money may be withdrawn from the National Revenue Fund except by legislative appropriation. The EM audits the Fund's receipts and disbursements as part of its annual fiscal mandate. Tariff rates established by a ratified treaty or approved trade agreement under §3.6 constitute legislatively authorized rates for the duration of that instrument; the Legislature may set tariff schedules within which the Legat Consul may negotiate specific rates.

§12.4 — National Endowment

The National Endowment is a constitutionally established reserve fund that backstops the Republic’s social state obligations under §12.1 during periods of Severe Revenue Contraction, as certified by the Monetary Authority. The Endowment operates independently of the annual budget process and is managed by the Monetary Authority as part of its constitutional mandate; the Monetary Authority’s sole obligation with respect to the Endowment is to preserve and grow it for social state backstop purposes. Disbursements are activated on Monetary Authority certification of Severe Revenue Contraction and continue until the Monetary Authority certifies the contraction has ended. Where a certified Severe Revenue Contraction continues beyond 12 months, continued Endowment disbursement requires authorization by statute, enacted through the ordinary legislative process and renewed at intervals not to exceed 12 months for the duration of the contraction. Where authorization is not renewed, disbursements cease and any adequacy-standard reduction under §1.17.a lapses with them. The Monetary Authority's certification of the contraction's end terminates disbursements and any such reduction regardless of authorization status.

§12.5 — Internal Commerce

No State or Territory may impose requirements on goods, services, or economic activity originating in another State or Territory that are more burdensome than those applied to its own. The Legislature may establish uniform internal commerce standards by statute.

§12.6 — Fiscal Equalization

The Legislature shall by statute establish a mechanism ensuring that every State and Territory has fiscal capacity reasonably sufficient to fulfill the Social State obligations under §12.1 and the rights guaranteed under Article I. The EM certifies annually whether the mechanism is operating as required. Where the EM finds the mechanism has failed, the Legislature publishes its response to the NRS within 90 days.

Article XIII — Direct Democracy

§13.1 — Optional Referendum

(1) Citizens may initiate a national referendum to repeal enacted legislation. The petition process begins within 90 days of enactment and proceeds in two phases, each authenticated through the NVS.

(2) Phase One, lasting up to 8 months, requires signatures from citizens equal to a percentage of eligible voters — defined by statute at not less than 0.5% nor more than 3% — in each of at least one-third of all States and Territories.

(3) Phase Two, lasting up to 8 months following Phase One's completion, requires signatures from 5% of eligible voters nationally; signatures gathered in Phase One carry over and count toward this threshold.

(4) Laws that solely or primarily expand an Article I right, budget laws, and laws implementing a constitutionally mandated obligation are ineligible.

(5) The Elections Panel applies these ineligibility categories when administering petitions; Any eligibility determination is challengeable in the Appellate Court within 14 days.

(6) If the threshold is met, the Elections Panel administers the referendum within 90 days of verification. A simple majority of votes cast, subject to a turnout threshold defined by the Legislature of not less than 30% and not to exceed 50%, repeals the law immediately upon certification.

(7) A failed referendum or initiative under this Article may not be re-initiated on the same or substantially similar grounds within three years; the Legislature may re-enact a repealed law, which is again subject to referendum. No statute, rule, fee, deadline, or administrative practice may make a process established by this Article nominally available but functionally prohibitive.

§13.2 — Citizen Legislative Initiative

(1) Citizens may propose legislation directly to the Legislature through the two-phase petition process of §13.1, except that each phase lasts up to 10 months and Phase Two requires signatures from 10% of eligible voters nationally.

(2) Once the threshold is met, if the Legislature does not enact the proposal within 90 days, it proceeds to a direct citizen referendum; passage requires 60% of votes cast with at least 50% citizen participation.

(3) An initiative enacted under this section is subject to this Constitution as any statute is, and may not narrow a right under Article I or appropriate funds or alter revenue; an initiative that does so is void to the extent of the conflict. Disputes are resolved by the SC under §4.5 on petition of any person with standing.

Article XIV — Military Authorization and Accountability

§14.1 — Authorized Purposes for Military Force

Military force serves two authorized purposes: protection of the Republic's territory, citizens, and treaty allies; and, with legislative authorization stating the specific grounds, response to crimes against humanity as defined under international law. The Legislature applies that definition directly in each authorization; no prior international recognition or finding is required. Three purposes are explicitly prohibited regardless of legislative authorization: the installation, support, or maintenance of a specific governmental structure in another sovereign state; resource extraction; and ideological imposition. Legislative authorization must state which authorized purpose it serves; authorization that cannot be linked to an authorized purpose is constitutionally void. The SC's review under this section is limited to whether the Legislature linked the authorization to one of the purposes enumerated above; the SC does not review whether the underlying facts satisfy that purpose's legal threshold.

§14.2 — Defense Authorization and Allocation

Military expenditure requires legislative authorization under §14.1 and budget passage under §12.2; the Legat Consul executes that funding. Where authorization specifies categories or amounts, the Legat Consul is bound by them; otherwise, the Legat Consul determines allocation within the authorized total. The Legat Consul answers public questions before the Senate at least annually, at intervals defined by statute, and provides classified briefings to the Senate during active operations. Neither obligation constitutes Senate approval or conditions the Legat Consul's authority to act. The Legat Consul keeps the Civic Consul informed of expenditure and its budgetary implications through the Council of Ministers under §2.14. When legislative authorization expires or lapses, all expenditure ceases; contracts may wind down for up to 90 days, with no new commitments permitted after expiration. The EM audits expenditure during active operations, including intelligence activities conducted in support of those operations. The EM publishes a comprehensive accountability report within 180 days of an operation's conclusion.

§14.3 — Military Accountability

Within the period defined by statute following the second renewal of a legislative military authorization, the Legat Consul submits a Transition and Reconstruction Plan to the Senate specifying the Republic's post-conflict obligations: status of alliance obligations, civilian reconstruction support, transitional justice support, and withdrawal timeline. The Senate reviews and approves the Plan, and may amend it in consultation and coordination with the Legat Consul. The approved Plan is binding on both executives within their respective domains. Legislative authorization may not be renewed beyond that point unless the Senate has approved a Plan; where authorization is not renewed, expenditure ceases under §14.2.

§14.4 — Treaty-Based Military Authorization

Where an existing treaty requires military action, the Legat Consul may act immediately and must notify both chambers and the Civic Consul within 12 hours, citing the specific treaty obligation triggered. Senate ratification of a treaty by the required supermajority constitutes legislative authorization for all military actions required by that treaty when its obligations are triggered; no separate legislative authorization is required for operations the treaty obligates. The Legislature's authority over treaty-based operations runs through appropriations and through the treaty withdrawal mechanism under §3.6. The oversight and accountability provisions of §14.2 apply from the moment of action. Where the SC determines that a treaty's trigger conditions were not met, military operations are limited to a defensive posture, and both chambers of the Legislature must vote on whether to authorize continuation of the action no later than 30 days after the SC's decision is published. An affirmative vote in both chambers constitutes legislative authorization, and the action proceeds under the ordinary terms of this Article from that point. Absent an affirmative

vote within the 30-day period, §14.2’s expiration and wind-down provisions apply. Treaty-based authorization extends only to military action the treaty specifically requires. Treaty-based authorization for an operation continues for up to 12 months from the moment of action; continuation thereafter requires renewal under §2.2, and §14.3 applies on the same terms as any other authorized operation. Where an operation conducted under this section extends beyond the action the treaty obligates, the extended action requires legislative authorization under §14.1 and is subject to §14.3 on the same terms as any other authorized operation. Whether particular action falls within a treaty's obligation is determinable by the SC on petition of any party with standing.

§14.5 — State Forces

A State may maintain organized forces for disaster response, civil emergency, and the preservation of public order within the State. Such forces are subject to Article I and to the prohibitions of §14.1 in all circumstances.

State forces may be called into federal service only under legislative authorization satisfying §14.1, and only for defense of the Republic against invasion or armed attack or to suppress insurrection against the constitutional order. They may not be employed outside the Republic's territory. While in federal service they are subordinate to federal command and no State may withhold them; otherwise they remain under the authority of the State.

The Civic Consul may request the assistance of a State's forces within that State, with the consent of the State authority designated by its own constitution. Assistance so rendered is coordination, not command, and the State may withdraw its consent at any time.

No State force may be employed against the constitutional order of the Republic, against another State, or to obstruct a federal constitutional function. Composition, training, equipment standards, and the terms of federal call-up are established by statute.

Article XV — Territorial Structure and Statehood

§15.1 — Territorial Compact

A Territory operates under a Territorial Compact: the restructuring agreement under §15.4 or the incorporation agreement under §15.6 where the Territory results from one of those processes, or otherwise a standard statutory framework the Legislature defines. Every Compact must provide for an elected local governing authority over matters of local concern.

§15.1.a — Provisional Status

Provisional status is a remedial constitutional status applicable only to an existing State under the remediation and devolution provisions of this Article; it is not an intermediate stage between Territory and Statehood. A State in Provisional status remains a State. Its constitution, government, courts, administrative functions, Assembly representation, social-state access, and Article I protections continue without interruption. Sitting senators complete their current terms, but no new Senate term begins for the State while Provisional status continues. The State returns to ordinary State status upon publication of two consecutive biennial Statehood Audits with no material failure finding by any Monitor.

§15.2 — The Statehood Audit

(1) A Territory's elected governing authority under §15.1 may by resolution request a Statehood Audit for the whole Territory. Alternatively, a citizen petition — signed by a percentage of eligible voters within the Territory defined by statute at not less than 5% nor more than 15%, authenticated through the NVS, and certified by the Elections Panel — achieves the same effect. A defined geographic subdivision of a Territory may petition for Statehood independently of the remainder under the same criteria, using the citizen petition mechanism scoped to eligible voters within the subdivision.

(2) Each Monitor conducts the portion of the Statehood Audit within that Monitor's constitutional domain and publishes an individual finding. The audit examines: free, lawful, and competitive elections; functioning constitutional government capable of State responsibilities; effective rule of law and lawful administration; substantial compliance with Article I; and other objective constitutional-capacity criteria established by statute. An overall failed audit requires at least two of the three Monitors to find a material failure within their respective domains. A single material-failure finding is published as a warning requiring remediation but does not constitute overall audit failure. A successful Statehood Audit for the admission requirements of subsections (3) through (5) requires completed findings from all three Monitors with no material failure finding by any Monitor; a warning does not count as a successful audit. All findings and dissents are published to the NRS.

(3) Initiation under subsection (1) opens a Statehood proceeding. The Territory must receive a successful Statehood Audit within two years after initiation. If no successful audit is achieved within that period, the proceeding lapses and may be initiated again under subsection (1).

(4) After the first successful Statehood Audit, the Territory remains a Territory and no Provisional status arises. A second successful Statehood Audit must be completed within two years after publication of the first successful audit. A failed audit or warning during that period does not by itself terminate the proceeding; the Territory may achieve the required second successful audit at any time before the deadline. If the second successful audit is not achieved within that period, the proceeding lapses and may be initiated again under subsection (1).

(5) Upon publication of the second successful Statehood Audit, the Territory becomes a State immediately by constitutional operation, subject to §15.5.a where applicable. No additional political vote, legislative act, executive confirmation, or Provisional stage is required.

(6) Statehood immediately creates two Senate seats. The Elections Panel assigns the two seats by public lot to two distinct existing Senate classes and administers a special election within 90 days. The first senators serve only the remainder of the assigned class terms; the classes and terms of existing States are unaffected.

(7) Every State is subject to a biennial Statehood Audit under the same Monitor structure and criteria. Judicial review of any Statehood Audit finding is available for legality, process, jurisdiction, and application of the stated criteria; a court may not substitute its policy judgment for a Monitor's domain assessment.

(8) Where active conflict prevents completion of a biennial audit in a significant portion of a State's territory, the Monitors may publish a provisional audit-status finding for that cycle. A provisional audit status is unavailable where the State materially contributed to the conflict conditions.

§15.3 — State Remediation and Mandatory Devolution Review

(1) An existing State enters the mandatory remediation track upon an overall failed biennial Statehood Audit under §15.2.

(2) A first consecutive failed audit produces an Early Warning and requires the State to publish a Remediation Plan within the period defined by statute; until such statute is enacted, the period is 90 days. A second consecutive failed audit produces a renewed Early Warning and requires a revised Remediation Plan. A passing audit before a third consecutive failure breaks the sequence.

(3) Upon a third consecutive failed audit, the Monitors certify the audit sequence to the Senate.

(4) The Senate must vote within the period defined by statute, not to exceed 90 days from certification, on whether to place the State in Provisional status under §15.1.a. Entry into Provisional status requires an absolute majority of the full seated Senate. If the Senate rejects the motion, the State remains in ordinary State status and continues on the remediation track.

(5) If the Senate does not vote within the required period, the question becomes privileged Senate business and the Senate may not take up non-emergency business until the vote occurs. A subsequent failed biennial Statehood Audit while the State remains on the remediation track requires a new certification and Senate vote under subsections (3) and (4).

(6) Upon Senate authorization, the State enters Provisional status immediately by constitutional operation.

(7) When the first sitting senator's term expires after the State enters Provisional status, the Elections Panel administers a citizen referendum on whether to pursue devolution under §15.4. If the referendum does not approve devolution and the State remains in Provisional status, the Elections Panel administers another referendum at two-year intervals thereafter.

(8) An affirmative referendum proceeds through the negotiation and ratification process of §15.4. Absent an affirmative referendum, the State remains in Provisional status and continues remediation.

(9) The certification and entry into Provisional status are reviewable on the grounds stated in §15.2(7); the Senate's political judgment under subsection (4) is not.

§15.4 — Voluntary Devolution and Merger

A State may voluntarily restructure its relationship with the Republic through devolution. Whether entered voluntarily under this section or following the mandatory-remediation route under §15.3, the process after entry is the same: first, a State referendum must achieve 60% of votes cast with participation by at least 50% of eligible voters on the principle of pursuing devolution; second, upon approval, the State and the Legislature negotiate a restructuring agreement; and third, the Senate ratifies the agreement by 2/3 of full seated membership. The agreement specifies asset and liability allocation, transition timeline, constitutional status of successor jurisdictions, fiscal obligations to

the Republic, and continuing obligations; it is legally binding. A State that initiates devolution voluntarily retains full State status, including Senate representation, unless and until the restructuring agreement takes effect. A State already in Provisional status remains in that status throughout negotiation. Any State completing devolution becomes a Territory before any further constitutional-status change. A Territory or defined portion of a Territory may merge with a geographically contiguous existing State, requiring a 60% referendum with at least 50% participation, approval by the existing State through its own constitutional process, a joint LM-JM assessment confirming the existing State's constitutional integrity is maintained, and Senate ratification by simple majority. A referendum for a defined portion of a Territory is triggered by a petition signed by citizens equal to a percentage of eligible voters within the defined portion — defined by statute at not less than 5% nor more than 15% — authenticated through the NVS and certified by the Elections Panel. The petition period may not exceed 12 months. Following certification of any referendum under this section, any party with standing has 30 days to file a legal challenge to the process or result. Where no challenge is filed, or upon resolution of a challenge that is filed, the window closes and the next step proceeds; a certified result may not be challenged on the same grounds once the window closes.

§15.5 — Re-Qualification Pathway

A Territory resulting from mandatory or voluntary devolution enters the §15.2 pathway immediately upon the effective date of devolution — no additional political vote is required. Where a defined geographic subdivision of the Territory separately achieves Statehood under §15.2 or merges with an existing State under §15.4, the remainder continues as Territory without interruption.

§15.5.a — Remainder Viability

(1) Where two or more petitions under §15.4 or §15.2 affecting different defined portions of the same Territory are certified within 90 days of one another, subsections (2) and (3) do not apply to any of them; all such petitions are addressed together under subsection (4).

(2) Where subsection (1) does not apply, the JMC must assess whether the Territory's remaining portion could realistically satisfy the conditions of the §15.2 Statehood Audit on its own administrative and economic resources. The assessment is due within 90 days of the certification of the petition under §15.4 or §15.2, and must be published to the NRS before that referendum is held or the subdivision acquires Statehood. Certification of the petition and the conduct of Statehood Audits may proceed pending this assessment; the Statehood proceeding remains subject to the deadlines in §15.2. The JMC may extend this period once, by up to 30 additional days, upon publishing a justification for the extension and a specified date by which the assessment will be completed. Where the JMC does not publish its assessment within that period, including any extension, the remaining portion is treated as not satisfying those conditions.

(3) Where the JMC finds the remaining portion could realistically satisfy those conditions, the underlying referendum or Statehood certification proceeds without further condition under this section.

(4) Where subsection (1) applies, or where the JMC under subsection (2) finds the remaining portion could not realistically satisfy those conditions, the underlying referendum(s) or Statehood certification(s) do not proceed. The Civic Consul convenes a Territory Convention, composed of the Assembly members representing districts within the Territory, to determine a proposed resolution addressing all affected portions together. The Convention has 90 days from its first session to produce a proposed resolution. Where no resolution is produced within that period, all petitions addressed under this subsection lapse together and the Territory continues undivided. None of the lapsed petitions may be reinitiated under substantially the same geographic scope for three years. Any resolution the Convention produces must be ratified by referendum of the eligible voters it affects, and proceeds under the applicable process of §15.2 or §15.4, including any approval, audit, or ratification steps those sections otherwise require.

§15.6 — Voluntary Incorporation

A sovereign entity may petition to join the Republic's constitutional framework as a Territory. The process requires a petition resolution adopted by the entity's own legislature by 2/3 majority, confirmed by a citizen referendum achieving simple majority on at least 50% participation. Upon confirmation, the entity and the Legislature negotiate an incorporation agreement specifying a transition period not exceeding 48 months; the Legislature ratifies the agreement by 2/3 of both chambers. Either chamber may request a JM assessment of the entity's compliance with §1.19.a before that ratification vote; published JM findings must be given due consideration. Any person with standing may challenge the incorporation before the SC on the ground that the entity systematically violates §1.19.a. No constitutional officer may condition treaty obligations, trade relations, military cooperation, or foreign aid on any entity's decision to initiate or advance this process. During the Transition Window, a recognized indigenous nation proceeds under §16.2; thereafter, a recognized indigenous nation holding Associated Community status petitions under this provision as a sovereign entity.

§15.7 — State Immutability and Territorial Integrity

A State's constitutional boundaries are fixed except as expressly provided under §15.4. No constitutional mechanism permits a State to divide directly into two or more States — the separating portion must first become a Territory before seeking independent Statehood. The Republic's territorial extent may only be reduced by the consent of the affected population through a parliamentary amendment with Popular Ratification, or through a citizen initiative amendment — parliamentary amendment with State Ratification alone is insufficient. A State may not secede by ordinary statute or State referendum alone. No executive action may alter the Republic's territorial extent. A founding status election under §16.2 during the Transition Window, or a completed process under §15.9 including its national referendum, satisfies the consent required by this section without further amendment or Popular Ratification. Recognition under §16.4 effects no territorial change; post-founding indigenous territorial transitions proceed under Article XVII.

§15.7.a — Reversion to the States and Territories

If §2.9.a(6) applies, the States and Territories are sovereign governments and may act as such, including by reconstituting the Republic. This is not secession under §15.7. The rights in §1.19.a continue to bind every government.

§15.8 — Local Government

Local governments — cities, counties, municipalities, and other subdivisions — receive constitutional recognition as primary points of contact between citizens and government. They are entitled to reasonable fiscal, legal, and administrative capacity to carry out the lawful functions assigned to them. States may not systematically defund, disable, or preempt local governments for the purpose of achieving de facto centralization of functions that local government remains reasonably capable of performing.

§15.8.a — Subsidiarity and Local Capacity

(1) Public functions not expressly assigned by this Constitution to the Republic or another constitutional institution shall be exercised at the most local level of government reasonably capable of performing them effectively and consistently with this Constitution.

(2) States retain authority to allocate ordinary governmental functions between State and local governments consistent with subsection (1), Article I, and the constitutional status of local government under §15.8.

(3) Responsibility may move to a higher level of government where the lower level lacks reasonable capacity to perform the function, materially fails a constitutional or lawful minimum standard applicable to it, the matter produces material effects across jurisdictions that cannot reasonably be resolved at the lower level, or coordination at the higher level is reasonably necessary to discharge an express constitutional obligation. Federal action additionally requires an independent source of federal competence under §3.10; this section does not itself create federal legislative competence.

(4) Action by a higher level under subsection (3) shall be limited to the scope and duration reasonably necessary to address the incapacity, failure, cross-jurisdictional effect, or coordination need. Responsibility returns to the lower level when that justification no longer exists, except where lawfully reassigned under an independent constitutional authority.

(5) No higher level of government may create or maintain lower-level incapacity through systematic denial of the fiscal, legal, or administrative means reasonably necessary to perform an assigned function and then rely on that incapacity as grounds for centralizing the function.

(6) This section does not diminish Article I, Indigenous sovereignty under Article XVI, the self-government of States, or any function expressly assigned by this Constitution.

§15.9 — Voluntary State Independence

(1) A State may seek independence from the Republic through a three-stage process.

(2) Stage One requires the State legislature to resolve by 2/3 majority to submit the independence question to the State's eligible voters; the referendum must achieve 60% of votes cast with at least 60% participation among the State's eligible voters; a failed referendum may not be reinitiated on the same or substantially similar grounds for five years.

(3) Upon certification of the referendum result, the Elections Panel publishes the independence petition to the NRS; the petition may not be withdrawn by the State while the process continues.

(4) The Republic may not prefer, discourage, or offer inducements toward any independence petition or referendum; the Republic must provide factual information about the process upon request.

(5) Stage Two requires both chambers to hold a concurrent ratification vote within 90 days of NRS publication; Assembly members elected from districts within the petitioning State and senators elected from the petitioning State are recused from this vote, and the required 2/3 majority and quorum for each chamber are calculated from the remaining seated members; if either chamber fails to achieve 2/3 or fails to vote within 90 days, the petition lapses and the State may reinitiate Stage One without restriction.

(6) Stage Three requires a national referendum administered by the Elections Panel within 180 days of the Stage Two vote, in which all eligible voters of the Republic — including those of the petitioning State — participate; independence is approved by 60% of votes cast under §7.3 with at least 55% citizen participation. Where the referendum fails, the petition lapses and the State may reinitiate Stage One without restriction.

(7) Upon certification of an affirmative Stage Three result, the State and the Legislature negotiate a separation agreement specifying asset and liability allocation, borders, transition timeline, fiscal obligations, and continuing obligations, ratified by the Senate by 2/3 of full seated membership; independence takes effect on the date the agreement specifies.

§15.10 — State Government Incapacity

Where a State's constitutional government has become incapable of exercising governmental authority and cannot be restored through its own constitutional continuity mechanisms, the Republic may temporarily administer only those functions necessary to preserve rights, essential services, and restoration of democratic State government. Where the State maintains forces under §14.5 not otherwise in federal service, command of those forces passes to the temporary administration for its duration. The State's constitutional identity and status remain unaffected. Temporary administration ends automatically when constitutional State government is restored.

Article XVI — Indigenous Sovereignty

§16.1 — Acknowledgment of Prior Sovereignty and Recognition

Indigenous Nations hold sovereignty that precedes the Republic. This sovereignty is acknowledged, not granted — the Republic's constitutional framework does not create it and may not extinguish it. The Republic deals with recognized indigenous nations as sovereign nations. A recognized indigenous nation, wherever that term appears in this Constitution, means a nation that, as of Day Zero, held a treaty with, a compact with, or formal recognition from a predecessor government, or a nation recognized under §16.4. A nation omitted from the founding register may appeal to the SC within the period defined by statute on the sole ground that the predecessor record was misapplied. Recognition confers no territorial rights of itself; no act of recognition alters the Article I rights, citizenship, property, or residency of any person.

§16.2 — Founding Status Election

(1) At ratification, the Republic formally notifies every nation on the founding register of its rights under this section.

(2) From Day Zero until the close of the Transition Window under §19.2, each recognized nation may elect, through its own lawful democratic or traditional governance process for major governance decisions, either: (a) Associated Community — continuing as a fully sovereign political community in a consensual Compact relationship with the Republic under Article XX; or (b) Territorial Integration — entering the Republic as a Territory under §15.1, with the ordinary §15.2 Statehood pathway available. A Territorial Integration election constitutes the petition and confirmation otherwise required by §15.6, and the nation and Legislature proceed directly to negotiation of an incorporation agreement ratified by 2/3 of both chambers. A recognized nation that independently qualifies for a founding direct-State entry under Article XIX may use that transition mechanism while it remains available; this does not create a separate post-transition Statehood pathway.

(3) If a recognized nation makes no status election during the Transition Window, the Republic treats it as an Associated Community pending conclusion, confirmation, or replacement of a Compact under Article XX. That interim treatment preserves the sovereign-to-sovereign relationship; it does not alter the nation's sovereignty, imply surrender, or constitute consent to Compact terms the nation has not accepted. Predecessor treaties, compacts, and lawful agreements continue according to §§16.3 and 16.5 until superseded.

(4) The Republic may not prefer, discourage, or offer inducements toward either status and must provide factual information upon request.

(5) Article I applies within the territory of each recognized nation throughout the Transition Window unless the nation, through its own lawful governance process, positively rejects that application and publishes the decision to the NRS. Following the Transition Window, the rights position is governed by the status held — §20.3 for an Associated Community or the ordinary Constitution for a nation that elected Territorial Integration.

(6) While Article I applies under subsection (5), any resident who believes an Article I right has been violated may bring an Emergency Rights Writ directly to the SC under its original jurisdiction in §4.5; the SC must rule within 7 days.

(7) Indigenous nation membership and Republic citizenship are compatible and independent statuses; no status election diminishes Republic citizenship.

(8) Election of Territorial Integration permanently ends the founding Associated Community or Compact status under this section. That former status may not be revived by reversing the election. If the community later becomes a sovereign independent nation, any future Associated Community relationship requires a new Compact under Article

XX. A sovereign independent Indigenous nation may seek Territory status under §15.6 on the same basis as another sovereign entity.

§16.3 — Treaty Supremacy and Continuity

All treaties entered into by predecessor governments with indigenous nations are binding obligations of the Republic, regardless of the nation's status under this Constitution. Treaty rights cannot be diminished by legislation — they must be honored, renegotiated with consent, or formally superseded by mutual agreement through negotiation between the Legat Consul and the nation, ratified by the Senate under §3.6. Where a treaty's administration depends on a predecessor-government institution or mechanism with no Republic equivalent, the treaty's substantive rights and obligations continue in full regardless; the Legat Consul and the nation must begin discussions to identify an analogous Republic institution or a negotiated substitute mechanism within the Republic's first year, and pending resolution, a ministerial counterpart designated by the Legat Consul administers the treaty's institutional functions on an interim basis. The EM audits the Republic's compliance with its treaty obligations under this section annually.

§16.4 — Post-Founding Recognition

A people asserting sovereignty preceding the Republic may submit a claim of prior sovereignty to the JMC at any time after the close of the Transition Window; the claim is published to the NRS. The JMC investigates the claim against the predecessor record and the criteria of §16.1. Claimants may present the published findings in a petition for recognition to the Legat Consul. Where a petition for recognition is submitted, the Legat Consul determines it within the period defined by statute, not to exceed 180 days, with written grounds whether recognition is granted or declined. Recognition under this section activates the Republic's obligations under §16.3, establishes the nation as a collective legal person capable of negotiating with the Republic and entering arrangements under statute and §18.4, and constitutes the factual predicate for any subsequent constitutional amendment under Article XVII concerning the nation's territorial or sovereign status. A declined petition may be resubmitted after 5 years or upon a material change in the available record.

§16.5 — Transition of Existing Arrangements

Existing arrangements between a recognized nation and the predecessor government — governance, services, land use, borders, trade, and infrastructure — continue provisionally from Day Zero until replaced by an Article XX compact, an incorporation agreement under §16.2, or a treaty instrument under §16.3. For a nation holding Associated Community status, the Republic must open compact negotiations under Article XX within 90 days of the status taking effect and negotiate in good faith; either party may propose terms at any time. Either party may petition the SC to resolve specific disputes arising within the provisional framework; nothing in this section delays or conditions the obligations under §16.3.

Article XVII — Constitutional Amendments

§17.1 — Amendment Paths

(1) This Constitution may be amended through the parliamentary path or through citizen initiative. Every member's vote on any amendment is published to the NRS.

(2) A parliamentary amendment requires 2/3 of the full seated membership of both chambers. The proposing body simultaneously specifies the ratification mechanism — either State Ratification (ratification by 2/3 of States within the period defined by statute) or Popular Ratification (a national popular referendum achieving 2/3 of votes cast with at least 55% citizen participation within 180 days).

(3) Citizen Initiative Amendment: A proposed constitutional amendment proceeds through the same two-phase petition process as §13.2, with Phase Two requiring signatures from 15% of eligible voters nationally rather than §13.2's 10%. Once the Phase Two threshold is met, the proposal proceeds directly to a national referendum, with no legislative or executive action required to place it on the ballot; the Elections Panel administers the referendum within 180 days of Phase Two threshold verification. Passage requires 70% of votes cast with a minimum 65% citizen participation; where the participation floor is not met the initiative fails and may not be resubmitted on the same or substantially similar grounds for five years.

(4) Amendment of the following provisions requires Popular Ratification regardless of the amendment's origin: the Monitor selection mechanisms and independence protections (§9.2–§9.4), the Monitor information-only mandate and non-dependency principle (§9.1), the Monitor funding guarantee (§9.6), the NRS architecture and permanence requirements (§10.1), the Elections Panel and NRS Panel independence (§11.1), the designation of non-derogable rights (§1.19.a) and the limit on amendments extinguishing them (§17.3(3)), the reversion of authority to the States and Territories (§15.7.a), and this subsection. These provisions may not be amended by State Ratification alone; a Citizen Initiative Amendment satisfies this requirement through its own referendum under this section without separately clearing the Popular Ratification threshold.

§17.2 — No Executive Veto; Amendment Takes Effect

Neither Consul has any role in the constitutional amendment process, and no signature or veto applies. An amendment takes effect upon certification of its ratification — by the LM for State Ratification, otherwise by the Elections Panel — and NRS publication, with no implementation delay or executive discretion over timing.

§17.3 — Amendment Consistency and Supremacy

(1) An amendment inconsistent with an existing provision is void to the extent of the inconsistency unless it expressly repeals or amends that provision.

(2) The JM publishes a consistency analysis of any proposed amendment within 30 days of passage by both chambers for a parliamentary amendment, or within 30 days of Elections Panel Phase Two threshold verification for a citizen initiative amendment — advisory only. No ratification vote on a parliamentary amendment may be held before the JM's analysis is published or the 30-day period expires, whichever occurs first.

(3) The SC resolves disputes over a ratified amendment's consistency under §4.5 on petition of any person with standing. It may not refuse to apply an amendment that has met its procedural thresholds, except that an amendment extinguishing a right designated non-derogable under §1.19.a is void to the extent of the extinguishment.

(4) Amendments operate prospectively — they do not retroactively alter the constitutionality of acts that were constitutional when performed.

(5) Two amendments may be in the ratification process at the same time. Where both are ratified and conflict, subsection (1) applies to the later one, and where they are ratified simultaneously, the LM determines precedence from NRS records.

(6) A proposed amendment may be withdrawn at any point before ratification is certified.

§17.4 — Supremacy of This Constitution

This Constitution is the supreme law of the Federated Republic. All legislative acts, executive orders, treaties, administrative decisions, and government actions must be consistent with this Constitution. Any provision inconsistent with this Constitution is void to the extent of the inconsistency.

Article XVIII — Federal Property and National Trust

§18.1 — The Use Doctrine

Federal government holds no territorial sovereignty within any State or Territory. All federal property rights are functional use rights — operational control over a designated footprint for the duration of the stated function. Use rights do not constitute ownership, do not transfer sovereignty from the host State, and do not survive the termination of the function that justified them. Every use right must be registered on the NRS with precise geographic boundaries, authorized purpose, and termination conditions. There are no unregistered federal land claims; disputes over registration validity are resolved under §18.3.

§18.2 — Seat of Government

The Republic holds no territorial sovereignty at its Seat of Government. The Seat is hosted by a State or Territory. Any State or Territory may bid to host the Seat through a competitive selection process defined by statute; a selected host must satisfy minimum requirements published to the NRS in advance of the selection. A State or Territory whose bid is rejected may challenge the selection before the SC on the ground that the selected bid did not satisfy the published requirements. The hosting arrangement grants the federal government Operational Use Rights over the designated footprint under §18.1; the host State or Territory retains full sovereignty outside that footprint. Federal control within the footprint is exclusive — the host may not tax federal operations or apply its own law to federal functions within the footprint.

§18.3 — Operational Use Rights

When a federal function ends, the Operational Use Right terminates automatically; the federal government must publish notice of termination to the NRS within the period defined by statute, not to exceed 90 days. The land and all improvements revert to the host State automatically unless the federal government and host State negotiate a retention agreement within the statutory reversion window. Disputes over use right boundaries, termination, registration validity, or improvement valuation go to the SC on an expedited track; neither party may occupy or alter disputed land during pending resolution.

§18.4 — The National Trust

The National Trust holds all federal land not conveyed by statute to States, recognized indigenous nations, or private parties. Land disposal requires statute — the executive cannot convey or encumber public land unilaterally. National Trust designation requires a 2/3 vote of both chambers with host State consent; removal from Trust designation requires the same 2/3 legislative threshold plus a national referendum administered by the Elections Panel within 180 days of the legislative vote, achieving 60% of votes cast with a minimum 50% citizen participation, and must comply with existing treaties and other obligations established in this article. International conservation agreements require a 2/3 Senate vote to withdraw before the national removal process begins. Land designated National Trust carries an active stewardship obligation: the federal government must maintain ecological integrity and public accessibility; the EM monitors compliance annually cross-referenced with §1.18. States and indigenous nations may enter co-management agreements with the Civic Consul for National Trust lands within their borders or ancestral territories without transferring Trust ownership. No statute may reduce the Trust's constitutional stewardship obligations, alter the designation or removal safeguards of this section, or diminish the EM's annual monitoring authority.

§18.5 — Federal Property in Territories

Federal operational use rights in Territories follow the same framework as in States under §18.1 and §18.3. Where §18.4 requires host State consent for National Trust designation, that consent is not required for a Territory, which has no State legislature; instead, the Territory's representative body must publish a written position to the NRS within 60 days of the proposed designation. Where no position is published within 60 days, designation may proceed. The LM's ongoing audit of territorial use rights encompasses verification of Territory publication compliance.

Article XIX — Transition and Ratification

§19.1 — Activation Threshold and Ratification

This constitution takes effect upon: (1) interim Elections Panel certification that the NVS is operational and meets §11.2; and (2) a national ratification vote achieving 60% of votes cast with at least 50% participation. Ratification creates binding constitutional obligations on all governmental actors from Day Zero. Where multiple sovereign nations simultaneously pool sovereignty through a treaty of union, transition provisions adapt as specified in the treaty of union, subject to the constitutional principles of this Article. Where the ratifying polity maintains existing institutions overlapping with constitutional mechanisms, the Legislature must by statute within two years of Phase 4 define their relationship; accommodation statutes may not reduce the legal standing of pre-existing governance structures below their pre-Phase 4 status. Where the Legislature fails to meet this deadline, the LM publishes a compliance finding, and the LM's ongoing audit encompasses the unresolved relationship until the statute is passed.

§19.2 — Day Zero and Transition

Day Zero is the date the ratification threshold is certified as achieved. Upon ratification, all laws conflicting with the Individual Sovereignty Floor are immediately null and void; all public assets, liabilities, rights, and obligations of the predecessor national government vest in the Republic by constitutional operation subject to this Constitution, and the authoritative records necessary to establish them are transferred or registered to the NRS as provided by law; and the 24-month Transition Window begins. The constitution is implemented through a four-phase transition: Phase 0 — pre-ratification preparation, during which the interim Elections Panel is constituted, the NVS certified operational, and the joint Monitor panel formed; Phase 1 — Emergency Stabilization (Days 1–90), during which predecessor national officials whose authority is displaced or superseded serve as caretakers and social state continuity is the priority; Phase 2 — Institutional Construction (Days 91–270), during which transition status determinations and any required Statehood Audits are conducted, Monitors formally constituted, and the NVS fully deployed; Phase 3 — First Elections (Days 271–450), encompassing the first federal electoral period and inaugural executive and judicial appointments; Phase 4 — Full Constitutional Operation, beginning the day the first Legislature convenes and the first executives take the constitutional oath.

§19.3 — Caretaker Status

(1) Officials and institutions of the predecessor national government whose authority is displaced or superseded by this Constitution continue during the Transition Window only in caretaker capacity as necessary to preserve lawful government, existing services, rights, obligations, and public safety. Existing State, territorial, Indigenous, and local governments continue under their own lawful authority except to the extent this Constitution expressly provides otherwise.

(2) A caretaker legislature may enact only measures reasonably necessary for continuity, rights, existing obligations, public safety, or implementation of this Article. No such measure may permanently restructure the constitutional government or bind the first Legislature beyond what is reasonably necessary for continuity. A measure intended to continue after Phase 4 remains subject to continuation, amendment, or repeal by the first Legislature. Legislation enacted outside these limits is void; the joint Monitor panel's supervision includes monitoring for violations; any Inhabitant may challenge such legislation before a court of competent jurisdiction.

(3) Transition is supervised by a joint Monitor panel of one representative per Monitor; the panel dissolves automatically at the Transition Window's conclusion. During Phase 0, before Monitor Generals are constituted, the interim Elections Panel constitutes the panel from a pre-qualified pool established by the ratification convention; from Phase 2, each Monitor General appoints their representative to the panel for the remainder of the Transition Window. A Monitor General appointment supersedes any interim Elections Panel appointment for that Monitor's seat.

§19.3.a — Transition National-Defense Continuity

(1) Until the Legat Consul and Legislature are constitutionally capable of exercising their respective national-defense authorities, predecessor national institutions continuing under §19.3 may exercise only the military and defense authority reasonably necessary to defend the Republic, its territory, population, and forces against actual or imminent invasion or armed attack, or to carry out military action specifically required by an inherited treaty obligation that remains binding under §19.5(5). Authority under this section does not extend to military action for any other purpose under §14.1.

(2) Existing predecessor military command arrangements, defense appropriations, mobilization authorities, procurement authorities, and operational authorizations remain provisionally effective only to the extent reasonably necessary for action authorized by subsection (1) and consistent with this Constitution. New commitments extending beyond the Transition Window may be made only where reasonably necessary to conduct or sustain that action and remain subject to alteration or termination by the competent constitutional authorities once constituted.

(3) Until the Legislature is constitutionally capable of exercising its authority, a predecessor national authority exercising caretaker command under subsection (1) may call State forces into federal service notwithstanding the ordinary legislative-authorization requirement of §14.5, but only to the extent reasonably necessary for defense against invasion or armed attack. Forces so called remain subject to Article I and §14.5 and are subordinate to federal command for the duration of that service.

(4) Defensive action under subsection (1) may occur outside the Republic's territory where reasonably necessary to repel, disrupt, or terminate the invasion or armed attack. This section does not authorize acquisition of territory, installation, support, or maintenance of a specific governmental structure in another sovereign state, resource extraction, ideological imposition, or hostilities unrelated to the defense or inherited treaty obligation that justified the action.

(5) Invocation of authority under this section, and the constitutional basis for it, must be published to the NRS as soon as operationally practicable. Operational details may be classified only under Article X. The joint Monitor panel's supervision under §19.3 encompasses action under this section and access to the records necessary to assess constitutional compliance.

(6) As each constitutional officer or institution ordinarily responsible for a function governed by this section becomes constitutionally capable of exercising that function, the corresponding authority transfers immediately by constitutional operation and caretaker command or decisional authority ends to that extent. A military operation begun under this section may continue under its transition authorization for no more than 60 days after the Legislature first becomes constitutionally capable, unless the Legislature earlier authorizes continuation under §2.2 or directs cessation; within 14 days after taking office, the Legat Consul must submit the operation for legislative authorization or begin orderly cessation. Defense appropriations preserved under subsection (2) remain available for such continuing operations until superseded by a constitutional budget or other lawful appropriation. Invocation of this section does not itself postpone an election or transition milestone, extend any term, alter territorial status, or suspend Article I.

§19.4 — Pre-Constitutional Classified Documents

Predecessor classified material is subject from Day Zero to the standards of Article X. The Legislature must establish an independent review mechanism within 90 days of Phase 4 activation to apply those standards systematically. Material satisfying Article X may remain classified only under Article X; material that does not satisfy Article X must be declassified and published to the NRS. Failure to establish or staff the permanent review mechanism cannot preserve a classification that is invalid under Article X or suspend the right to review. Until the permanent mechanism

is operational, a lawful temporary mechanism exercises only the review authority necessary to apply Article X and preserve access to review. Any Inhabitant may obtain Supreme Court review of a determination concerning predecessor classified material.

§19.5 — Pre-Existing Obligations

(1) The Republic assumes the public debt obligations of its predecessor government as a constitutional matter — it does not inherit a clean slate.

(2) Active military operations of the prior government continue under existing authorization until the §2.2 military authorization framework can apply; the Legat Consul, once inaugurated, must assess each active operation against the authorized purposes under §14.1 and either link it to legislative authorization within 14 days or begin orderly cessation; operations not so linked within 60 days cease unless the Legislature grants a one-time authorization. Military action arising after Day Zero while the ordinary constitutional defense actors are not yet capable is governed by §19.3.a.

(3) Social insurance programs — retirement pensions, disability benefits, health coverage — continue uninterrupted during the Transition Window.

(4) All benefit obligations to persons who served in military or national service under the prior government are inherited and honored; the Legislature must provide for their administration by statute within the first budget cycle following Phase 4.

(5) The Republic succeeds to and shall act as the legal continuation of the prior government in its international relations; all international obligations, financial commitments, treaty relationships, and contractual obligations of the prior government are assumed as successor sovereign. Where an assumed international obligation conflicts with this constitution, the Republic is bound to renegotiate or formally supersede the obligation through the treaty process under §3.6; until that process is complete, the obligation is honored to the minimum extent required by international law without requiring any constitutional officer to violate Article I or any non-derogable right under §1.19.a.

(6) From Day Zero, an independent judicial forum must remain continuously available for Article I claims arising from the nullification or displacement of predecessor law. Failure to establish or staff the permanent federal judiciary does not suspend jurisdiction or remedy. A temporary judicial mechanism may exercise only the authority necessary to preserve constitutional rights and ends automatically when the permanent judiciary is constitutionally capable of exercising the relevant jurisdiction.

§19.6 — Transition Territories

(1) Territories or subdivisions whose entry status depends upon qualification during the Transition Window may seek State status through a Statehood Audit completed by the end of Phase 2. An entity that does not achieve the required audit enters as a Territory and may begin the ordinary Statehood pathway under §15.2 immediately.

(2) Any territory may choose Territory status by simple legislative vote regardless of whether it meets the Statehood Audit.

(3) Prior government states or territories may voluntarily subdivide during the Transition Window by vote of their existing legislative body; new subdivisions are treated as separate petitioning entities.

(4) Subsections (1) through (3) apply only to entities whose entry status depends upon qualification or reorganization during the Transition Window. A political entity entering as a founding State under subsection (6) is not subject to a Phase 2 admission audit.

(5) All prior government territories that had not achieved statehood by Day Zero enter as Territories from Phase 4 activation without undergoing Phase 2 Statehood Audits; any capital district or special administrative region is assigned Territory status and follows the §15.2 path.

(6) Political entities that held recognized State or equivalent status immediately prior to ratification and choose to enter the Republic as States become full States for all constitutional purposes from Day Zero. Their immediate State status includes constituting the Senate and seating their legislators and is not limited to those functions.

(7) The biennial Statehood Audit under §15.2 applies to all States from the first full audit cycle following Phase 4 activation; no founding status confers exemption from ongoing audit obligations or the consequences of audit failure. All other status determinations — Territory entry, Statehood qualification during the Transition Window, and post-founding pathways — follow §15.2.

§19.7 — Transition Candidate Registers

The joint Monitor panel assembles the initial Candidate Registers for constitutionally established positions before Phase 3 elections can occur. The panel performs the register-assembly and qualification-review function required during transition; it compiles the founding register of recognized Indigenous nations under §16.1 from the predecessor record and publishes it to the NRS before the close of Phase 1. Compilation is ministerial and applies the predecessor record as it stands. Registers assembled by the panel carry full constitutional validity and the Legislature continues them through the first budget cycle after Phase 4. The panel performs interim Monetary Authority certification functions from Phase 4 activation only until the Monetary Authority is constitutionally constituted and capable of performing those functions under §12.1.a. Initial MA staffing and selection must comply with the independence, candidate-process, confirmation, staggered-term, and removal safeguards of §12.1.a; no temporary transition arrangement creates or implies a constitutionally fixed MA Director.

§19.8 — Transitional Accountability Mechanism

Where a ratifying polity’s predecessor government has documented constitutional violations, the Legislature may by statute passed by 2/3 of both chambers establish a Transitional Accountability Mechanism. Such a mechanism must be time-limited — not to exceed ten years in duration — non-criminal, and consistent with Article I in all its operations. The establishing statute defines the scope, procedures, and duration; no amending statute may expand the scope without the same 2/3 majority; the NRS record is permanent. No new Mechanism may be established within ten years of the sunset of a prior one.

§19.9 — Required Institutions and Temporary Continuity

Where this Constitution requires a statutory independent agency or other permanent institution to perform a specific constitutional function, the Legislature must establish the permanent institution within the statutory period and the following constitutional maximums from Phase 4 activation: the civic proficiency assessment administrator under §5.1, 180 days; the census agency under §3.2, 18 months; and a constitutionally capable Monetary Authority under §12.1.a, 180 days. A lawful temporary substitute may perform only the functions necessary to preserve constitutional continuity or rights until the permanent institution is capable. Missing an establishment deadline does not enlarge the substitute's authority, make it permanent, or suspend the underlying constitutional obligation. A missed constitutional maximum is immediately justiciable; a court of competent jurisdiction may compel the responsible actors and may authorize only those temporary measures necessary to preserve continuity or rights. Temporary substitute authority ends automatically when the permanent institution is constitutionally capable of performing the function. The LM publishes a compliance finding when an establishment deadline is missed and when the permanent institution becomes operational. The Legislature may not permanently delegate a constitutionally required independent function

to a Monitor in lieu of establishing the required institution. The Legislature must by statute establish the transition from predecessor voting infrastructure to the constitutionally required NVS, ensuring no gap in democratic participation.

§19.10 — Founding Senate and Judicial Classes

(1) At the first Senate seating, senators are assigned to three approximately equal cohorts by public lot: the first cohort serves an initial term of two years, the second four years, the third six years; thereafter all Senate terms are six years. The lot is conducted by the Elections Panel and published to the NRS before the first senators take the constitutional oath.

(2) At founding, the initial Supreme Court justices are assigned as evenly as practicable by public lot administered by the Elections Panel to three classes. The first class serves an initial term of four years, the second an initial term of eight years, and the third an initial term of twelve years. Thereafter each seat carries the single non-renewable twelve-year term established by §4.3 and §4.4. Founding service under this subsection constitutes the justice's single term for purposes of those provisions and creates no eligibility for later appointment to the Supreme Court.

Article XX — Associated Communities

§20.1 — Nature of Associated Community Status

An Associated Community is a sovereign political community that remains outside the Republic while maintaining a consensual compact relationship with it under this Article. The compact may establish reciprocal rights, services, responsibilities, institutional cooperation, and other agreed relations without incorporating the Associated Community into the Republic or subjecting it to the Republic's constitutional governmental structure. Associated Community status is available to recognized indigenous nations electing or holding that status under §16.2, to sovereign nations that have achieved full sovereignty through the constitutional amendment process or the independence process under §15.9, and to independent nations outside the Republic seeking such a relationship. It is not State or Territory status, a transitional status, or a form of incorporation.

§20.2 — Compact Terms and Equal Sovereignty

The Republic and an Associated Community are equal parties to the compact; neither is constitutionally superior. Observing delegates attend Assembly and Senate proceedings relevant to the compact — speaking rights, no vote, no quorum or threshold effect. The Republic may not impose its constitutional governance architecture on an Associated Community as a condition of the compact relationship. Minimum democratic legitimacy requirements applicable to States do not apply to Associated Communities.

§20.3 — Compact Conditions and Compliance

(1) No compact may be entered or ratified with any entity whose governance practices include, authorize, or systematically permit violations of any of the non-derogable rights established in §1.19.a, committed against any person within its jurisdiction.

(2) The JM conducts annual compliance reviews. Where the JM finds systematic violations of §1.19.a rights or any party challenges a compact on those grounds, the compact is suspended pending review through the compact's independent arbitration mechanism; the arbitration panel must issue a preliminary determination within 90 days of suspension; where no preliminary determination is issued within that period, the suspension lifts and the compact resumes pending the panel's final determination.

(3) The arbitration panel may determine compact termination on confirmed violations without remediation within the period the compact specifies.

(4) Economic value of the compact relationship is not a factor in JM assessment or arbitration review.

(5) Where an Associated Community's territory includes indigenous nations with pre-existing governance relationships, the compact must address those relationships and may not require the Associated Community to eliminate or diminish pre-existing indigenous governance arrangements within its territory.

(6) Compact suspension means the Associated Community's observer delegate participation rights are suspended for the duration of the review; all other compact obligations of both parties continue in effect pending the arbitration panel's final determination.

§20.4 — Sovereign Mobility

The Associated Community may at any time, by its own democratic or traditional governance process, elect to terminate the compact and proceed as a fully independent sovereign nation. No Republic consent is required for compact termination, and the Republic may not impose conditions on or penalties for the decision to terminate. Compact termination takes effect on a date not less than 12 months from the date the Associated Community publishes written notice of termination to the NRS, to allow orderly transition of any services the compact provides.

Where the Associated Community's highest governance authority issues a formal ruling within the 12-month period that the termination decision was invalid under the community's own governance law, the community may withdraw the termination notice; the Republic acknowledges the withdrawal and the compact continues.

§20.5 — Reciprocal Obligations and Review

The compact must specify with particularity the reciprocal obligations of both parties and the review mechanism. The Associated Community holds obligations to the Republic as well as rights from it. Review must be scheduled at regular intervals defined in the compact; either party may request a review outside the schedule by providing written notice to the NRS.

§20.6 — Compact Ratification

A compact with an Associated Community requires Senate ratification under §3.6. Both executives must transmit the proposed compact to the Senate simultaneously with a joint assessment of its consistency with this Article. A ratified compact takes effect on the date specified in its terms. Where the executives cannot agree on a joint assessment, each may publish a separate assessment to the NRS; the Senate receives both and may proceed to ratification on that basis.

§20.7 — Compact Continuity

Compacts in force at the time of any government transition continue without interruption and bind successive governments of the Republic. No election result, change in the Republic's internal constitutional arrangements, or government transition affects the validity or standing of a compact in force. A new government may initiate renegotiation of a compact through the process the compact specifies but may not unilaterally suspend, modify, or withdraw from a compact pending renegotiation.